開源授權還重要嗎？

從開源管理到 AI 合規開發工程

v.20261028

群牧開源管理顧問有限公司 / 鈞理知識產權事務所 法制顧問
CC Taiwan Chapter Lead / CC 台灣計畫主持人、台灣開源法律網絡 OSLN.tw 共同創辦人
Legal Adviser @ Herding Open Source Management Consultants Ltd. & Gemly Int’l IPR Office
林誠夏 / Lucien Cheng-hsia Lin Email: lucien.cc@gmail.com
LinkedIn: https://tw.linkedin.com/in/lucienchlin

數位發展部 數位產業署：企業開源趨勢講堂

AI 時代的企業開源運用管理與價值創造 2026.11.04

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lucien.cc@gmail.com

林誠夏 / Lucien C.H. Lin

本職：

1 、群牧開源管理顧問有限公司 / 鈞理知識產權事務所 法制顧問

2 、 CC Taiwan Chapter Lead 、台灣開源法律網絡 共同創辦人

3 、究心公益股份有限公司獨立董事

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2 、臺北市政府公共參與組市政顧問

http://tw.linkedin.com/in/lucienchlin



https://data.gov.tw/license



臺灣主權AI訓練語料庫
(Beta版)

關於語料庫 | 申請須知 | 語料資料集 | 授權條款 | 合作夥伴 | 登入/註冊

臺灣主權AI訓練語料授權條款-第1版

前言：

為促進以人為本的人工智慧（AI）研發與應用，增進公眾利益、提升在地文化價值，並促進自然語料的永續發展，特訂立本授權條款，以加速並提倡相關資料之流通。

一、名詞定義

1. **授權人**：指具備合法權利的個人或單位，依據本授權條款提供其所管理之語料資料予被授權人，以協助被授權人在被明確同意的基礎下，使用該等語料資料於人工智慧的訓練與學習。

https://taic.moda.gov.tw/content/license

職場實務應用的角度

探索開源授權與商務策略間的正確認知

及 AI 工具應用合規之道

大綱

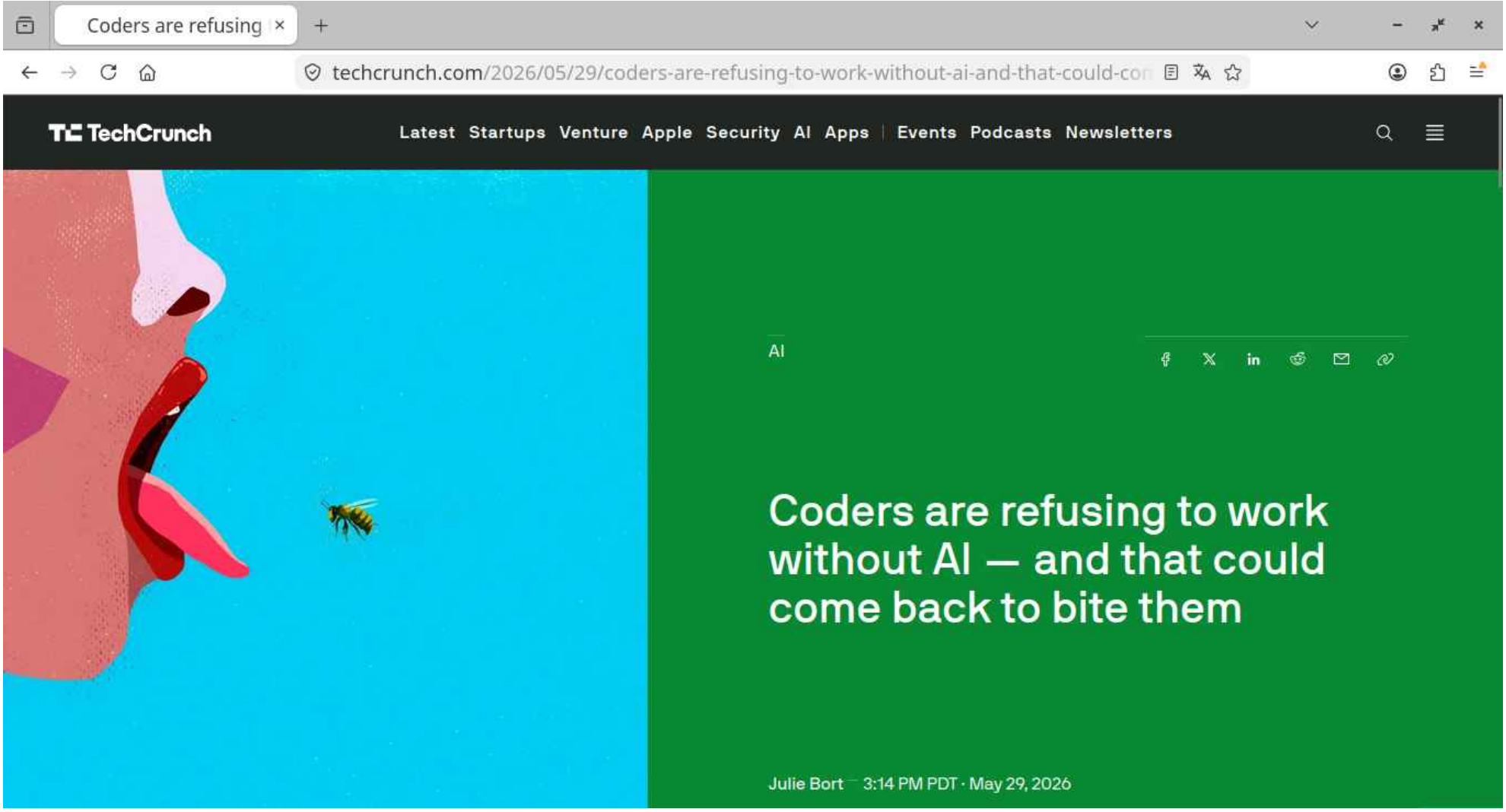
1. AI 開發對資訊軟體產業的衝擊
   1.1. AI 與開源的合作、競爭及其社群衝擊
   1.2. 有了 AI 工具之後，還需要手刻軟體嗎？
2. 務實立場因應 AI 時代的變局
   2. 1. 開源不滅體、相當期間還不會
   2. 2. 不要重新創作輪子
   2. 3. AI 合規開發工程
3. 善用真開源作為協作基底

1. AI 開發對軟體產業的衝擊

這些事是怎麼做的？

Vibe Coding

（氛圍編程 / 感覺編程）



https://techcrunch.com/2026/05/29/coders-are-refusing-to-work-without-ai-and-that-could-come-back-to-bite-them/

METR （Model Evaluation & Threat Research）

- AI 加快了程式開發？
- 需注意之處：

1.程式碼品質低落問題

2.Bug 或資安漏洞一致性

3.長期 technical debt 的積累 → 技術債

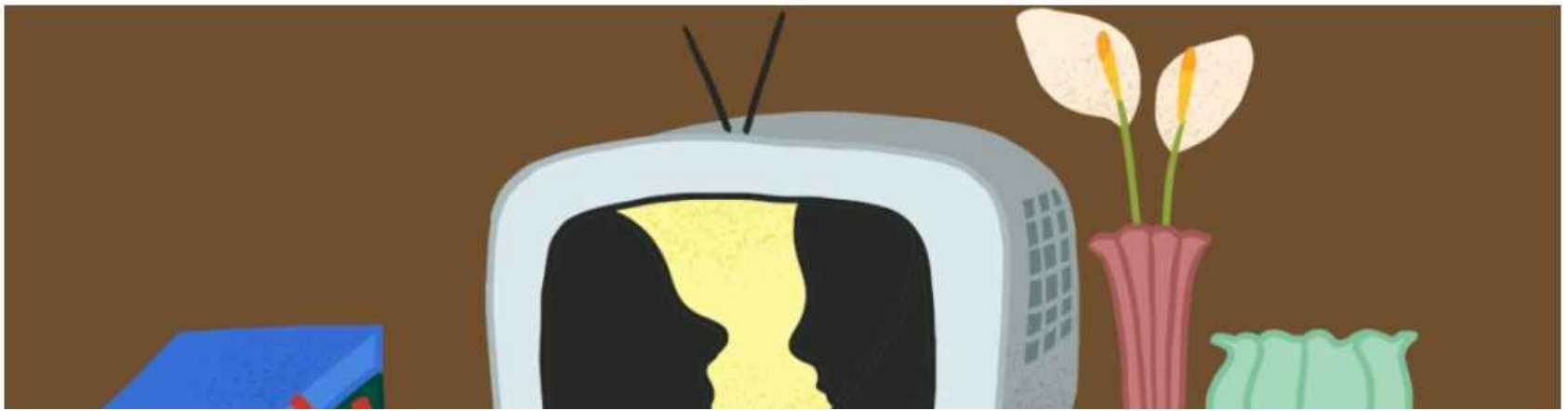
4.開發者對底層原理理解下降

1.1. AI 與開源的合作、競爭及其社群衝擊

FFmpeg to Google: Fund Us or Stop Sending Bugs

A lively discussion about open source, security, and who pays the bills has erupted on Twitter.

Nov 11th, 2025 8:30am by Steven J. Vaughan-Nichols



https://thenewstack.io/ffmpeg-to-google-fund-us-or-stop-sending-bugs/

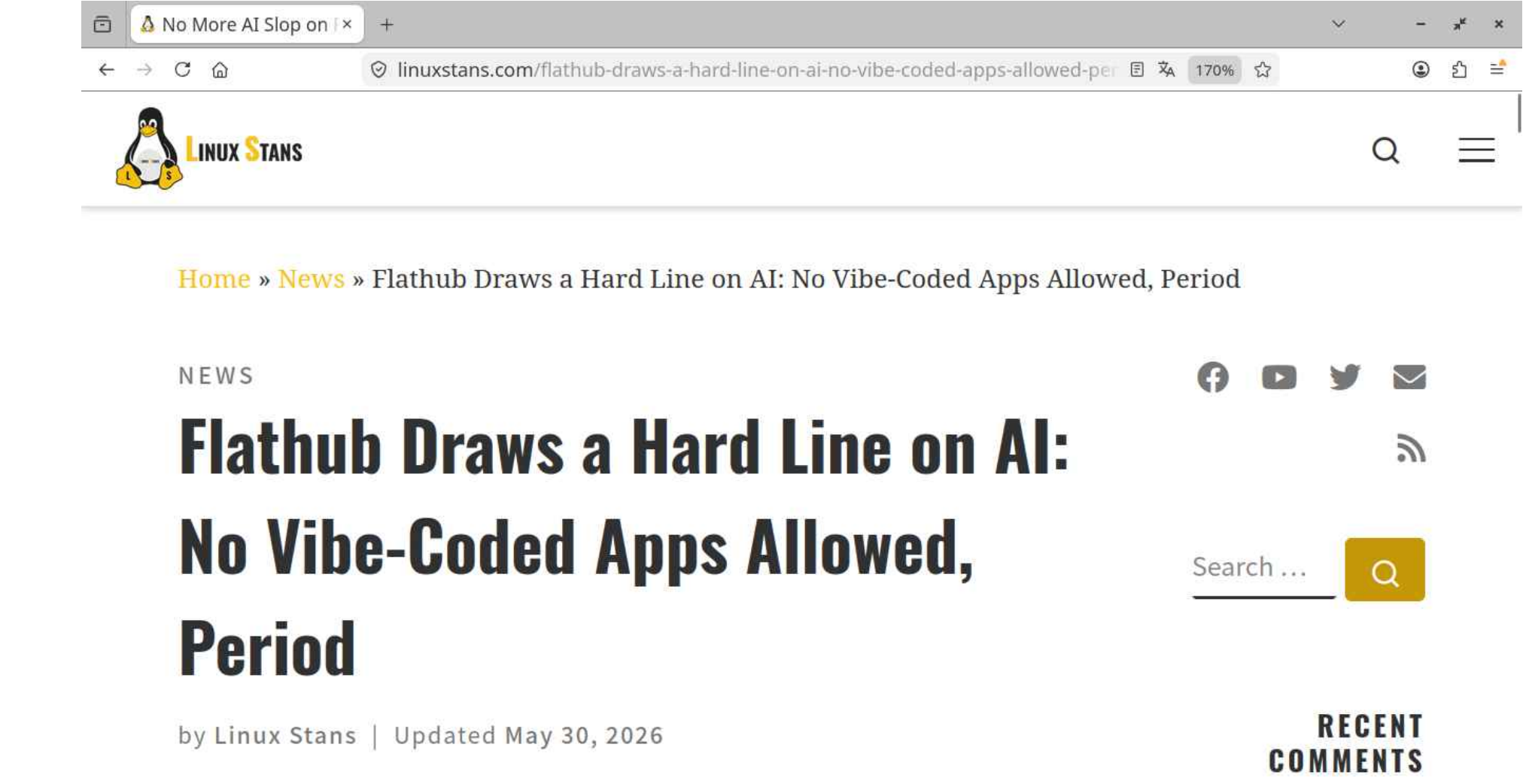


Linux 核心維護者 Greg Kroah-Hartman：AI 寫的修補，至少一半是錯的 【AI 大人說】

AI 101
4.54萬位訂閱者
訂閱

529 分享 儲存

https://www.youtube.com/watch?v=3OB4xnDqjoY



https://linuxstans.com/flathub-draws-a-hard-line-on-ai-no-vibe-coded-apps-allowed-period/

Linux 35th Anniversary

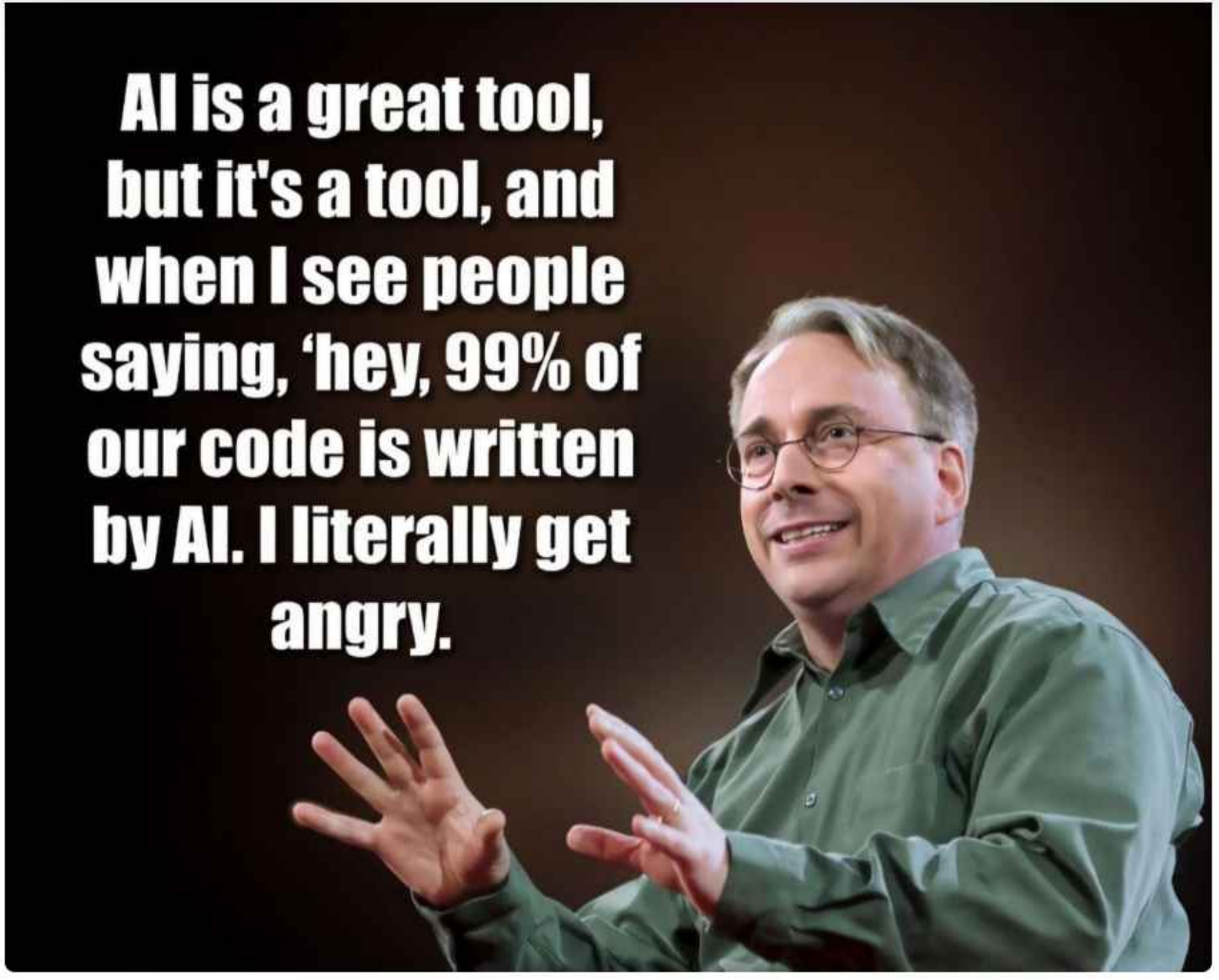


Everything you need to celebrate #Linux35

"I'm doing a (free) operating system (just a hobby, won't be big and professional like gnu)…"

— Linus Torvalds, Usenet, August 25, 1991

Copyright © 2026 The Linux Foundation®. All rights reserved.
Save these Linux35 graphics and share them wherever you post about #Linux35.
https://www.linux.com/linux35th/



Torvalds shared his views a few months back. Lot has changed since then

https://itsfoss.com/news/torvalds-used-ai-fix-kernel-bug/

And no, that's not the position of the Linux kernel.

I realize that some people really dislike AI, but this is an area
where I'm willing to absolutely put my foot down as the top-level
maintainer.

Linux is not one of those anti-AI projects, and if somebody has issues
with that, they can do the open-source thing and fork it.

Or just walk away.

AI is a tool, just like other tools we use. And it's clearly a useful one.

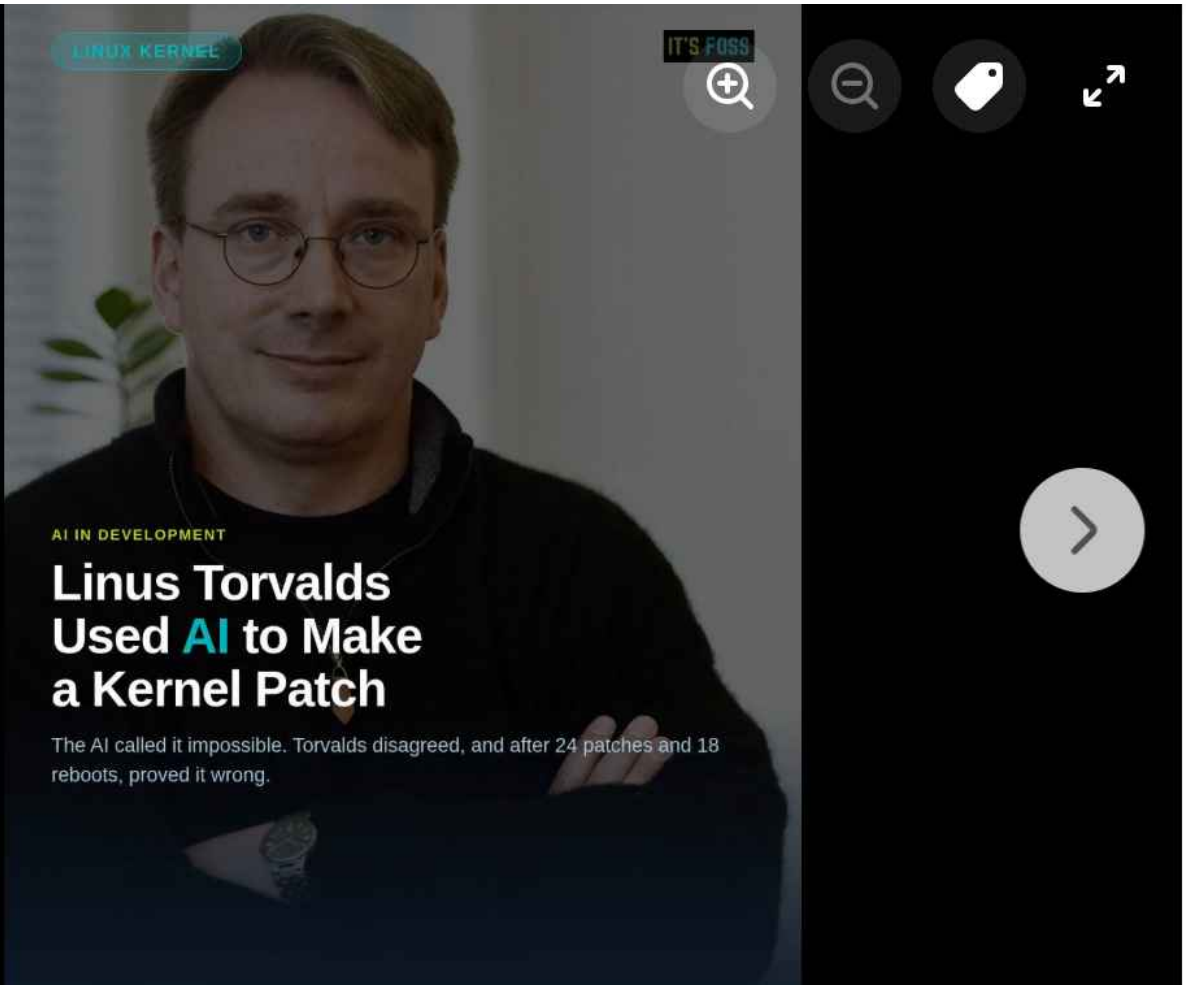
It may not have been that "clearly" even just a year ago, but it's no
longer in question today.

There are other questions around AI (like what the economy of it will
actually look like in the end), but "is it useful" is no longer one of
those questions. Anybody who doubts that clearly hasn't actually used
it.

Yes, it can also be a somewhat painful tool, both for maintainer
workloads and just from a "it keeps finding embarrassing bugs"
standpoint.

But the solution is not to put your head in the sand and sing "La La
La, I can't hear you" at the top of your voice like some people seem

https://lore.kernel.org/linux-media/CAHk-%3Dwi4zC%2BZe8e%2Bp3tMv8TtG_80KzsZ1syL9anBtmEh5Z40vg%40mail.gmail.com/



It's FOSS
8月22日上午10:04 ·

Linus Torvalds just used AI to help fix a Linux kernel bug. And this is a rare event.

Rare because Torvalds doesn't code on Linux kernel anymore. He just reviews code and merge pull requests from contributors.

So this is a rare occasion in recent time where he made a kernel patch himself. And he took assistance of AI this time.

The bug was in the Intel Xe graphics driver for Battlemage G21 cards. It caused GDM, the display manager, to restart endlessly. Tracking it down r…… **查看更多**

https://www.facebook.com/itsfoss/photos/1353924216848628/

The 2026 Maintainers Summit

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By **Jonathan Corbet**
October 12, 2026

The Maintainers Summit is a one-day, invitation-only gathering of about 30 kernel developers; it is held once each year to discuss policy-related issues that are not always amenable to resolution via email. The 2026 event was scheduled for October 8 in Prague, Czechia. Unsurprisingly, the discussion there was dominated by large language models (LLMs) and their effect on the development community, but some time was also found to talk about security bugs and long-term succession planning.

Unlike previous years, the 2026 Summit did not have a well-defined schedule with specific developers identified to lead the discussion on each topic. The conversation was rather more free-flowing, and this writeup will match that structure (or lack thereof). Some minimal reordering has been done in an attempt to provide a more coherent overview.



TL;DR

For those who do not want to plow through all that follows, here is a summary of the most significant conclusions. Please note that this is entirely my interpretation; it is not any sort of official communication from the Summit.

- Sashiko no longer reports pre-existing bugs found when reviewing patches; the reaction to this change was mixed. Sashiko is appreciated, but some maintainers fear it fuels the rapid tweak-and-resend cycle that new submitters tend to fall into.
- Linus Torvalds believes that blaming LLMs for the kernel community's problems is wrong, when the problem is LLM users who do not understand how to use them or how the kernel works. A properly trained LLM is a useful tool, but it takes a lot of time to reach that point.
- Torvalds and others repeatedly said low-quality contributions from new developers should receive low priority, and that the community should stop trying to make contribution easy. Many developers said, repeatedly, that trying to mentor those developers is almost always a waste of time; they do not listen.
- There is some concern about companies maintaining private kernels with LLM help, but there does not seem to be much to be done about it.
- Kernel developers should not be required to use LLMs to work in the community, but those who do need to have enough resources available to generate acceptable results.
- The requirement to add Assisted-by tags to patches created with LLMs will be removed, but maintainers still want to know about how a patch was created.
- The development community is struggling to keep up with the flood of security patches, and will continue to for some time. Some of the most urgent fixes may bypass maintainers and go straight to Torvalds. Maintainers were cautioned against telling their employers about vulnerabilities before public disclosure happens.
- The maintainers each briefly presented an aspect of the development process that causes them pain; many talked about the review process, keeping up with the load, and submitters who are not interested in learning.
- Torvalds said that the community should start thinking more about how leadership succession should work so that there will be a plan in place when, some years from now, he decides to retire.

Sashiko and patch review

綜整開源領域的 AI 輔助：

不是全好、或全壞

而是必須佐以適當的管理或規則

掌握與維護人類的核心能力

來盡量讓相關事務有理有據

Google Summer of C ×

www.jenkins.io/projects/gsoc/ai-usage-policy/

Jenkins

Blog Success Stories Contributor Spotlight Documentation Plugins Community Subprojects Security About Support Download

Search CTRL K

Google Summer of Code (GSoC): AI Usage Policy for Jenkins Contributions



At Jenkins, we value authentic contributions, deep understanding, and code quality. While we recognize that AI tools (like ChatGPT, GitHub Copilot, Gemini, Claude, etc.) are powerful aids, their misuse in open source can lead to incorrect code, licensing issues, and maintenance burdens. To ensure the quality of our project, we have established the following guidelines for using AI tools:

For Contributors (or Mentees)

On this page

- For Contributors (or Mentees)
- Why This Policy Exists

Connect

- gitter join chat
- Meetings
- Forum

Recent Blog Posts

- Meet Mohammed Faheem - GSoC 2026 Contributor Working on Jenkins Email Notifications using Outlook SMTP with OAuth
- GSoC 2026 Community

https://www.jenkins.io/projects/gsoc/ai-usage-policy/



LLM Usage

NOTE

⚠️ Failure to disclose LLM usage or submission of unreviewed AI-generated content **may result in proposal dismissal** from GSoC without further review ⚠️

Purpose

This document establishes guidelines for the responsible and transparent use of **AI and Large Language Models (LLMs)** (e.g., ChatGPT, Gemini, Claude, Copilot, etc) by **Google Summer of Code (GSoC)** contributors working on OWASP projects.

The intent of this guideline is to support learning and productivity while preserving originality, accountability, and open-source integrity.

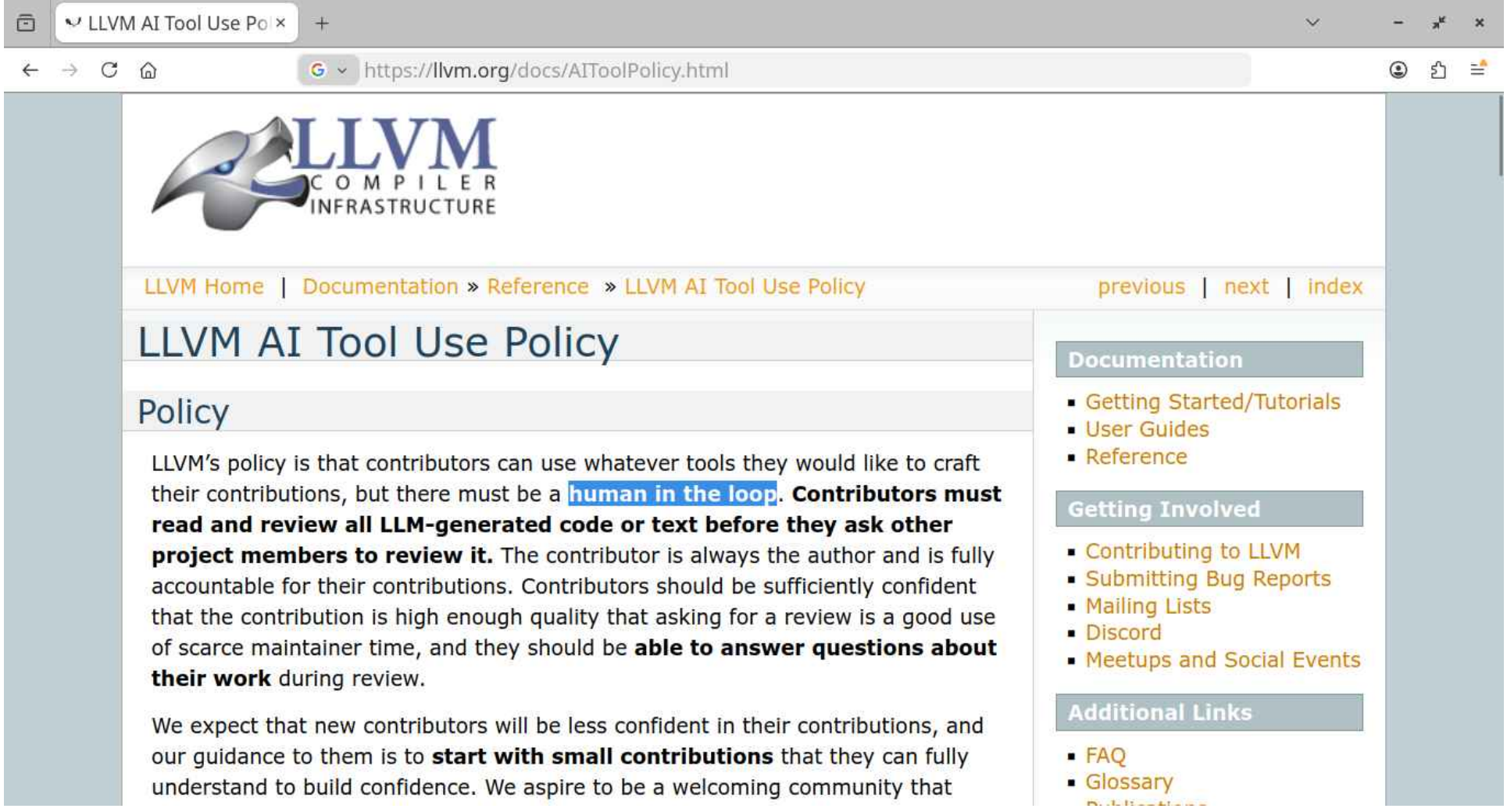
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1. Acceptable Use

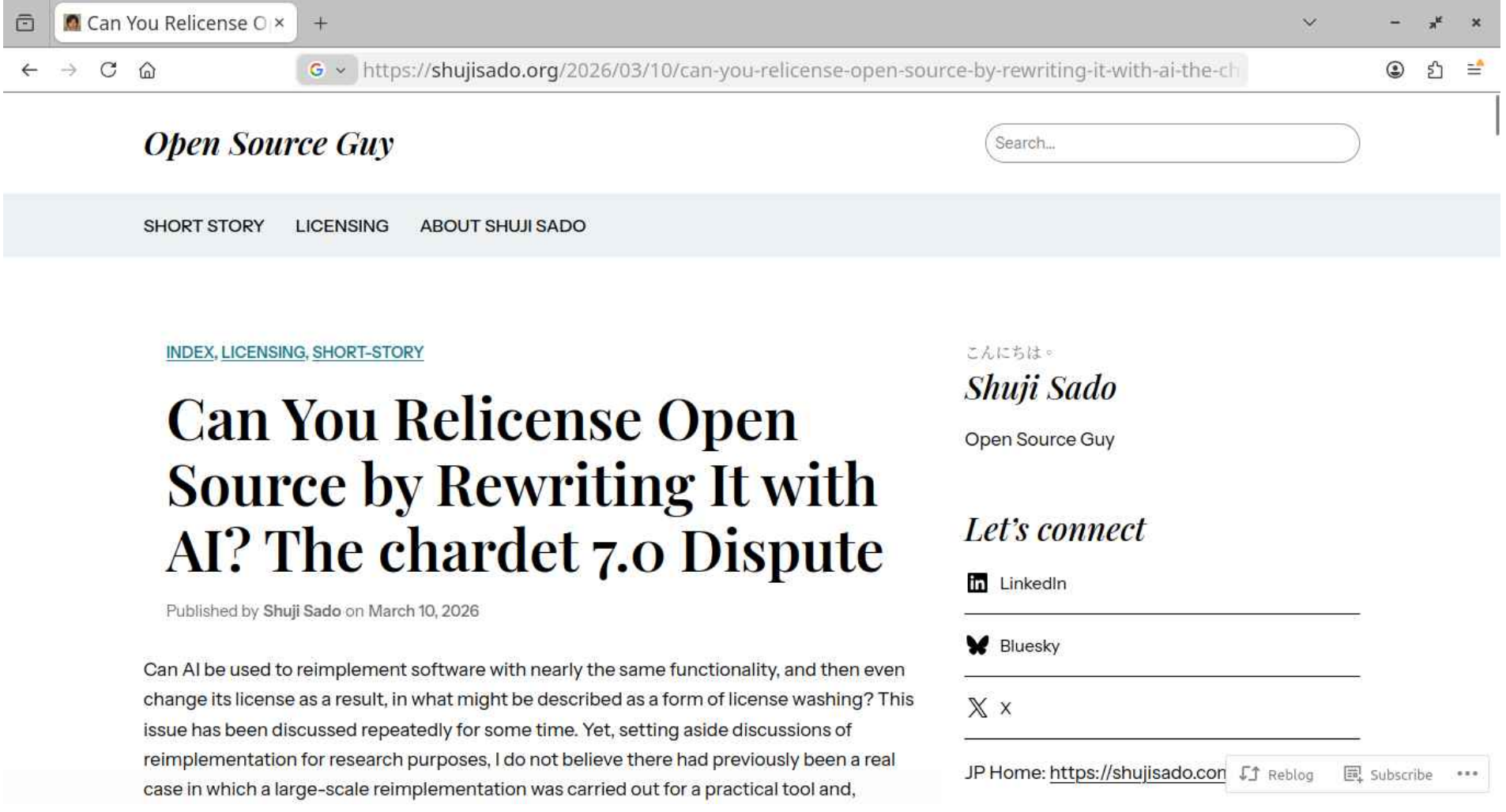
Contributors **may use LLMs** for supportive tasks, including:

- Improving clarity, grammar, or structure of documentation or reports
- Assisting with code comments, summaries, or test-case generation
- Learning and exploration, provided outputs are independently reviewed and understood

https://owasp.org/www-community/initiatives/gsoc/gsoc_ai_usage_guidelines



https://llvm.org/docs/AIToolPolicy.html



https://shujisado.org/2026/03/10/can-you-relicense-open-source-by-rewriting-it-with-ai-the-chardet-7-0-dispute/

Python chardet 7.0 事件

1.長年採用 LGPL

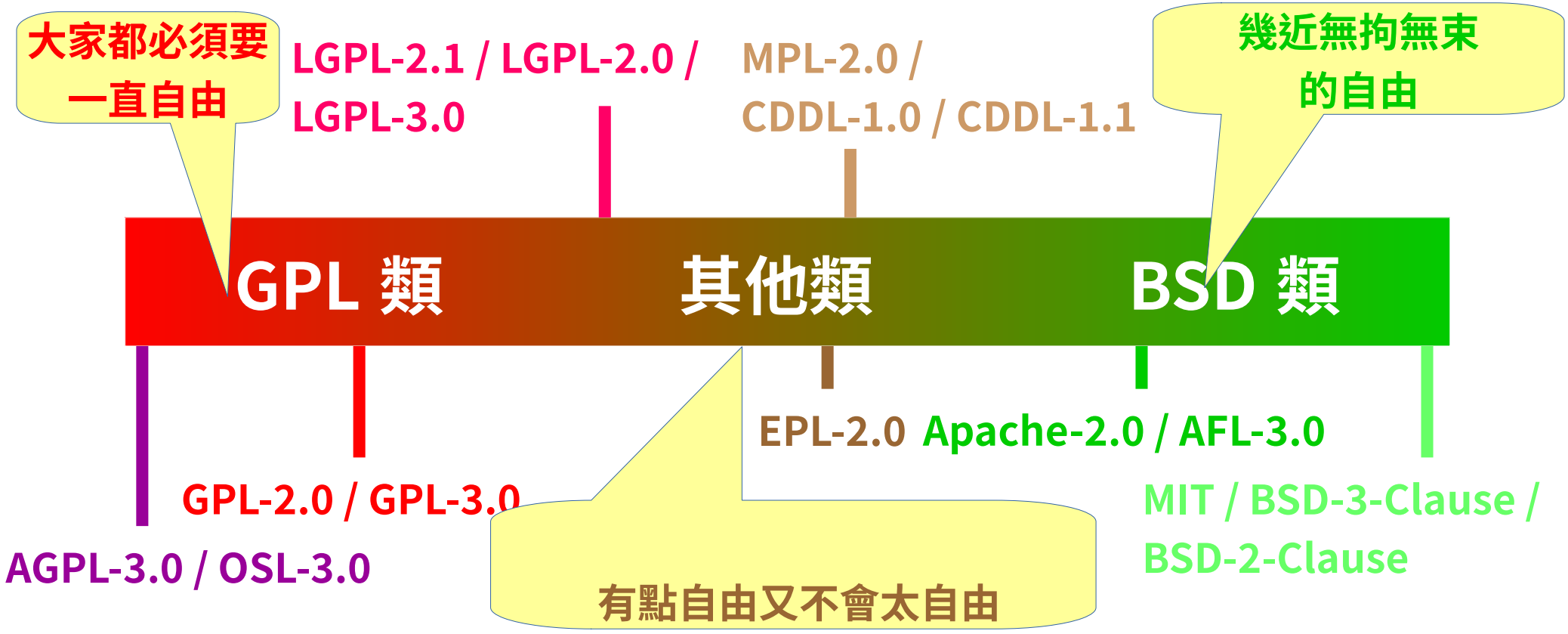
2.維護者 Dan Blanchard 宣布以 Claude Code 協助進行「ground-up rewrite」

3.隨後將 7.0 版改採 MIT License

4.保留同一個專案名稱、同一個 API 、同一個套件位置

5.引發是否屬於合法轉換授權與尊重開源方法論的爭議

開源軟體的三大分類


大家都必須要
一直自由
LGPL-2.1 / LGPL-2.0 /
LGPL-3.0
MPL-2.0 /
CDDL-1.0 / CDDL-1.1
幾近無拘無束
的自由
GPL 類
其他類
BSD 類
AGPL-3.0 / OSL-3.0
GPL-2.0 / GPL-3.0
EPL-2.0
Apache-2.0 / AFL-3.0
MIT / BSD-3-Clause /
BSD-2-Clause
有點自由又不會太自由

GPL 類 (Strictly Copyleft)

1 、修改 GPL 程式產生「衍生程式」，此衍生程式必須採用 GPL 授權。

2 、採 GPL 授權程式，對他人散布目的碼之後，就必須同時或後續提供程式源碼。

3 、衍生範圍依著作權法之抽象解釋與司法判決之指導。

GPL-like(Strictly Copyleft)

GPL

GPL-2.0, GNU General Public License 2.0

GPL-3.0, GNU General Public License 3.0 DRM-free

LGPL

LGPL-2.0, GNU Library General Public License 2.0

LGPL-2.1, GNU Lesser General Public License 2.1

LGPL-3.0, GNU Lesser General Public License 3.0 DRM-free

AGPL

AGPL-3.0, GNU Affero General Public License 3.0 DRM-free

BSD 類 (Permissive License)

1 、著作權聲明 (Copyright Notice)

2 、免責聲明 (Disclaimer)

3 、之後可以進行「任何事情」

4 、 MIT / BSD 為重要代表

Apache-2.0(擴充商用細節)

1 、明示提醒：商標權 (Trademark) 未授權

2 、明示提醒：可收費提供擔保 (Warranty)

3 、軟體專利 (Patent) 授權規定

4 、軟體專利反制條款

5 、相容於 GPL-3.0 、不相容於 GPL-2.0 （由於專利）

其他類 (Something-based Copyleft)

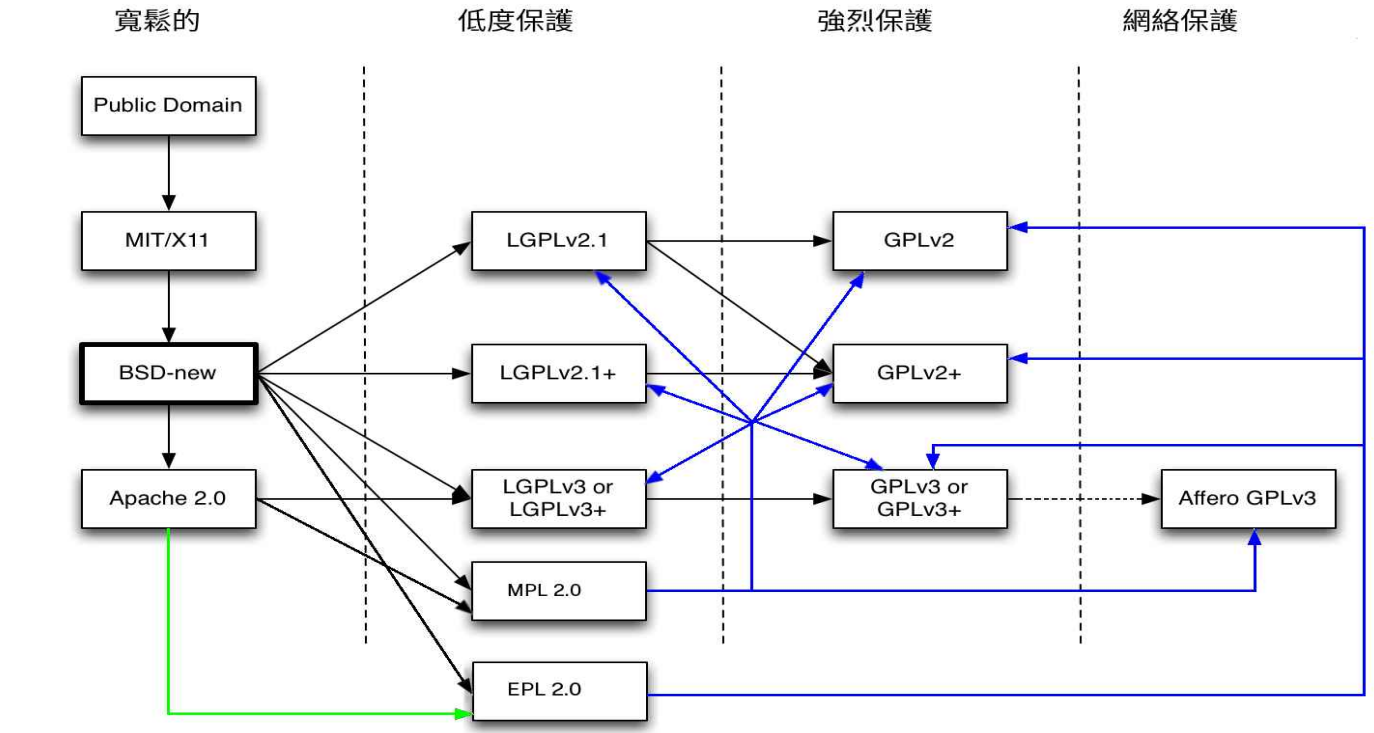
1、檔案基礎的獨立性和拘束力 - MPL, CDDL

2、模組基礎的獨立性和拘束力 - EPL, CPL

3、原來開源的必須保持開源

4、然能採檔案或模組區隔者、得採不相衝突之自訂授權

自由開源軟體授權相容圖

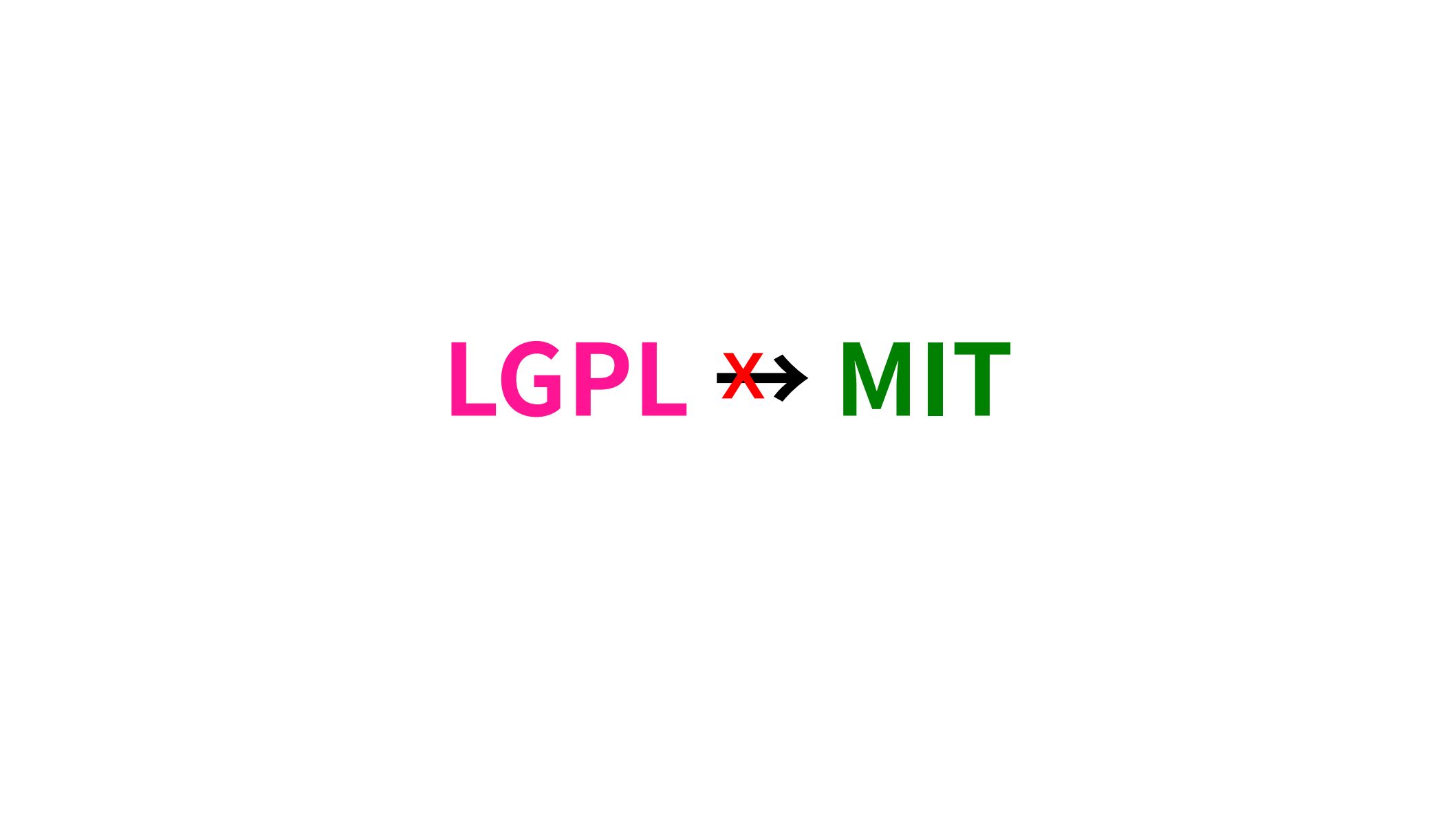


要查看軟體是否能夠結合，請從個別的授權條款開始並找到一個可以通過該許可證的箭頭到達的方框。其他(相容的)可能性是存在的，如果您僅是使用軟體作為函式庫，或是援引特定項目根據具體情況而得採的例外條件。虛線表示兩者之間應援引授權條款的特殊相容機制，線線表示“無已知相容限制”，但相容性並未經授權條款發布機構正式驗證，藍線表示「輔助條款(Secondary License)」機制應在個案被啟動才符合相容性。

這張圖表由 林誠夏(Lucien C.H. Lin) 中譯自於David Wheeler的原創作品及HHMI(Janelia Farm FlyEM Project)的衍生作品，它可以在 CC授權 姓名標示-相同方式分享 3.0 未本地化版本授權(CC BY-SA 3.0)下被改作。

http://www.dwheeler.com/essays/floss-license-slide.html

http://janelia-flyem.github.io/licenses.html


LGPL
MIT



What does the MIT license cover in chardet?

New issue

#334

Closed

#349



richardfontana opened on Mar 7

In #327 **@dan-blanchard** says:

> I did not write the code by hand, but I was deeply involved in designing, reviewing, and iterating on every aspect of it. [. . .] But the evidence here is clear: 7.0 is an independent work, not a derivative of the LGPL-licensed codebase. The MIT license applies to it legitimately.

The current LICENSE file containing the text of the MIT license is prefixed by "Copyright (c) 2024 Dan Blanchard"

Assignees

No one assigned

Labels

No labels

Type

No type

Fields Give feedback

https://github.com/chardet/chardet/issues/334

1.2. 有了 AI 工具之後，

還需要手刻軟體嗎？

Crafting Apps: open

getartcraft.com/apps

130%

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01 / CRAFTING APPS

THIRTEEN APPS · OPEN SOURCE · PURE RUST

CRAFTING APPS

Thirteen apps. One craft.

Image editing, vector illustration, video, photography, PDFs, motion graphics, page layout, interface design, word processing, audio, presentations, CAD and spreadsheets. Native, open-source apps from the ArtCraft team, built in Rust and free to use.



DOWNLOAD LAUNCHER

JOIN THE DISCORD

BROWSE ON GITHUB

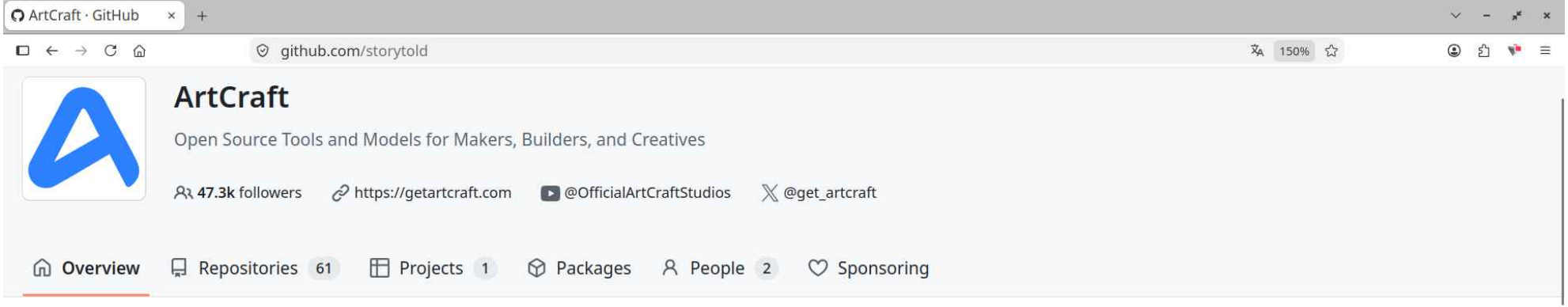
FOR LINUX · FLATPAK (X86_64)

Recommended: ArtCraft Launcher installs every app below and keeps them all up to date. Each app also has its own installers on its page. Learn more

SHARE COPY LINK X REDDIT BLUESKY LINKEDIN

LINEUP
PRINCIPLES
GET STARTED

https://getartcraft.com/apps



https://github.com/storytold

IF IT QUACKS LIKE ADOBE

"Software is over": Bold AI developer takes aim at Adobe with open source clones

Opus-built Creative Cloud alternatives are ambitious, free, and nowhere near finished.

KYLE ORLAND – 2026年10月8日 上午5:56 | 399



Think that's a screen from Photoshop? Look again... Credit: Artcraft

For a while, those hoping to avoid the difficulty and expense of dealing with Adobe's Creative Suite have been able to use several free and/or open source alternatives that replicate some or all of those capabilities. Now, one developer is using AI-powered reverse engineering to mimic the look, feel, and functionality of Adobe's well-known software with what he hopes will soon be perfect fidelity.

https://arstechnica.com/ai/2026/10/software-is-over-bold-ai-developer-takes-aim-at-adobe-with-open-source-clones/

為什麼可以這樣做？

Clean Room Engineering

(淨室工程)

WineHQ - Run Wind × Clean Room Guideli × Clean-room design - ×
en.wikipedia.org/wiki/Clean-room_design 133%
WIKIPEDIA 25 years of the free encyclopedia
Donate Create account Log in

Clean-room design

10 languages

Article Talk Read Edit View history Tools

From Wikipedia, the free encyclopedia

(Redirected from Clean room design)

> *This article is about the design-copying technique. For the manufacturing or research environment, see clean room. For the software development methodology, see cleanroom software engineering.*

Clean-room design (also known as the Chinese wall technique) is the method of copying a design by reverse engineering and then recreating it without infringing any of the copyrights associated with the original design. Clean-room design is useful as a defense against copyright infringement because it relies on independent creation. However, because independent invention is not a defense against patents, clean-room designs typically cannot be used to circumvent patent restrictions.

The term implies that the design team works in an environment that is "clean" or demonstrably uncontaminated by any knowledge of the proprietary techniques used by the competitor.

https://en.wikipedia.org/wiki/Clean-room_design

軟體程式碼

為著作權保護之客體

著作權保護標的

僅止於著作的表達（形式）

著作權法

並不保護「**點子**」！

除非您去申請專利或是把它當營業秘密！

著作權法第 10-1 條：

http://law.moj.gov.tw/LawClass/LawSingle.aspx?Pcode=J0070017&FLNO=10-1

著作權法第 10-1 條

依本法取得之著作權，其保護僅及於該著作之表達，而不及於其所表達之思想、程序、製程、系統、操作方法、概念、原理、發現。

https://law.moj.gov.tw/LawClass/LawSingle.aspx?pcode=J0070017&flno=10-1

17 U.S. Code § 102(b) – Subject matter of copyright: In general

In no case does copyright protection for an original work of authorship extend to any idea, procedure, process, system, method of operation, concept, principle, or discovery, regardless of the form in which it is described, explained, illustrated, or embodied in such work.

https://www.govinfo.gov/content/pkg/USCODE-2021-title17/html/USCODE-2021-title17-chap1-sec102.htm



頭條要聞 〉 北捷封殺12款App 網友怒

分享到FB 分享到g+ 分享到Plurk 分享到Twitter

北捷封殺12款App 網友怒

「正版太爛 好用的卻被下架」

2013年01月16日 g+1 29



台北捷運公司要求侵權的App下架。廖祥瑞攝

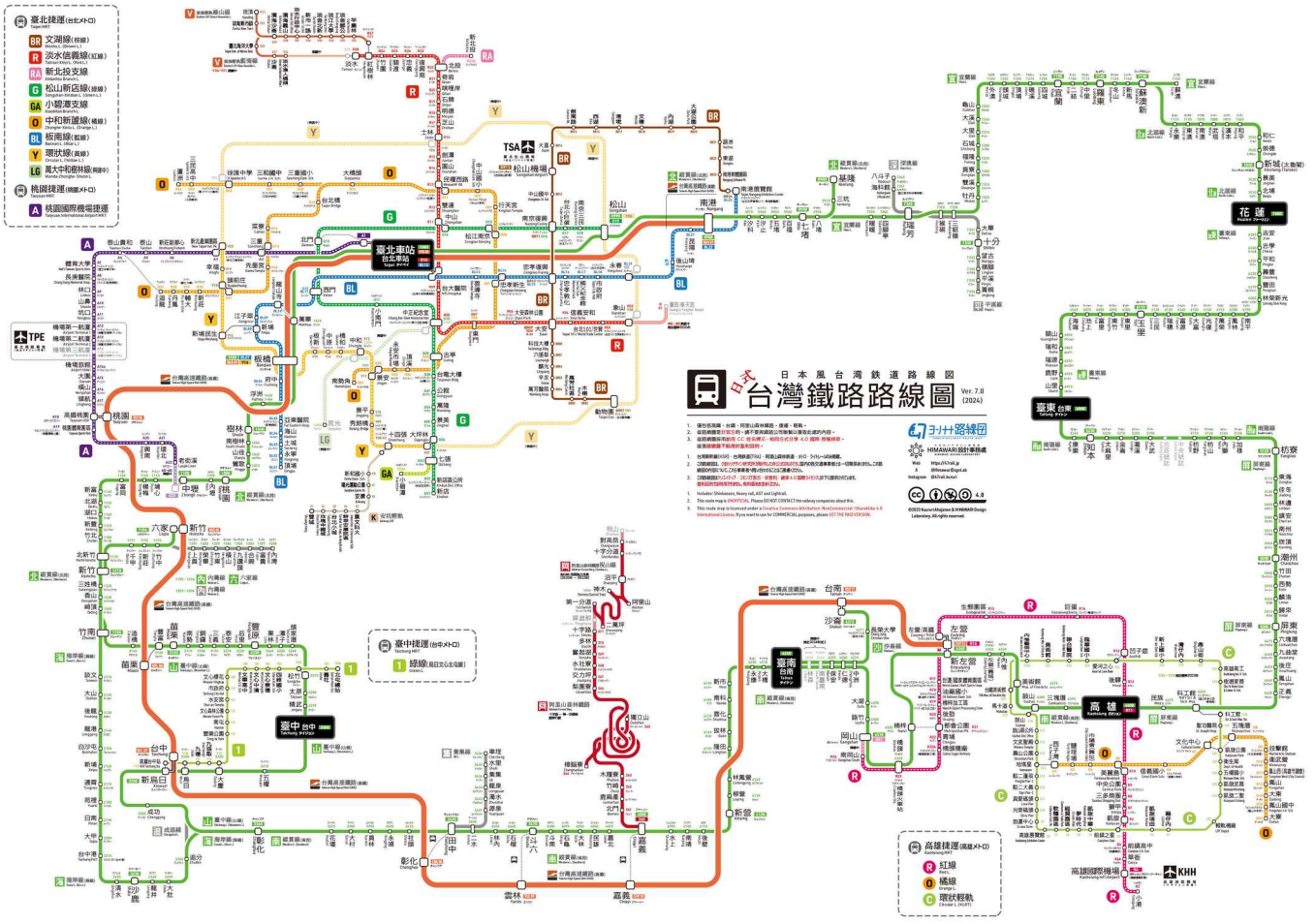
【許麗珍／台北報導】台北捷運公司向手機軟體Ａｐｐ業者開鍘，去年底以違反著作權為由，發文要求Google Play與App Store兩下載平台撤除十二款未經北捷授權的捷運網圖Ａｐｐ，截至昨日已有五款下架，並籲民眾下載北市交通局正版「台北好行」Ａｐｐ。網友砲轟「台北好行」太爛，好用Ａｐｐ卻被要求下架。

按讚看蘋果 食安問題追追追

網友kenf（肯夫）在台大PTT（telnet://ptt.cc）貼文，指Google Play知名北捷查詢Ａｐｐ「台北捷運地圖」遭下架，檢舉的北捷並對涉及侵權的其他同類型十一款Ａｐｐ，向軟體商店提出檢舉，引發網友熱烈討論。

Fair Use at: http://web.metro.taipei/img/all/metrotaipeimap.jpg

Public Domain for the text at law at: http://www.appledaily.com.tw/appledaily/article/headline/20130116/34773133/



HIMAWARI 設計事務處， " 日式台灣鐵路路線圖 "--2024 Ver.7.0 @ https://47rail.jp/get-routemap/taiwan/, CC-BY-NC-SA 4.0 .





左圖： Metro Taipei 官方路網圖，右圖：依左圖採用 OpenAI ChatGPT-6.1 Sol 轉換為 Tokyo Metro 風格，皆採合理使用 (FAIR USE) 立場引用。



Taipei_Metro_Stations_and_Connections.md — ReText

檔案 編輯 說明

預覽 樣式 特殊符號

Taipei_Metro_Stations_and_Connections ×

臺北捷運路網圖：站名與連線列表

> 依使用者指定圖片逐線整理。本文是圖片的結構化轉錄，非截至今日的營運路網查核。圖中淡色路線也納入，但顏色深淺不單獨當作營運狀態證據。

讀法與範圍

- 每個路線表依站序排列；相鄰兩列代表同一路線直接相連，原則上可雙向理解。
- 表中的「相鄰站」只計同一路線的邊，不含步行轉乘。
- 分支另列，不把兩支線的終點誤接成同一路段；分支節點為北投、七張、大橋頭、濱海沙崙。
- 保留圖上站名用字（如「台北車站」「台北101/世貿」）；不包含站名旁的學校、醫院等副站名。
- 站碼將圖上分行字母與數字合併，例如 BL／01 寫成 BL01。
- 台鐵、高鐵僅作轉乘標記；原圖未提供其完整站序，故不推補鐵路連線。

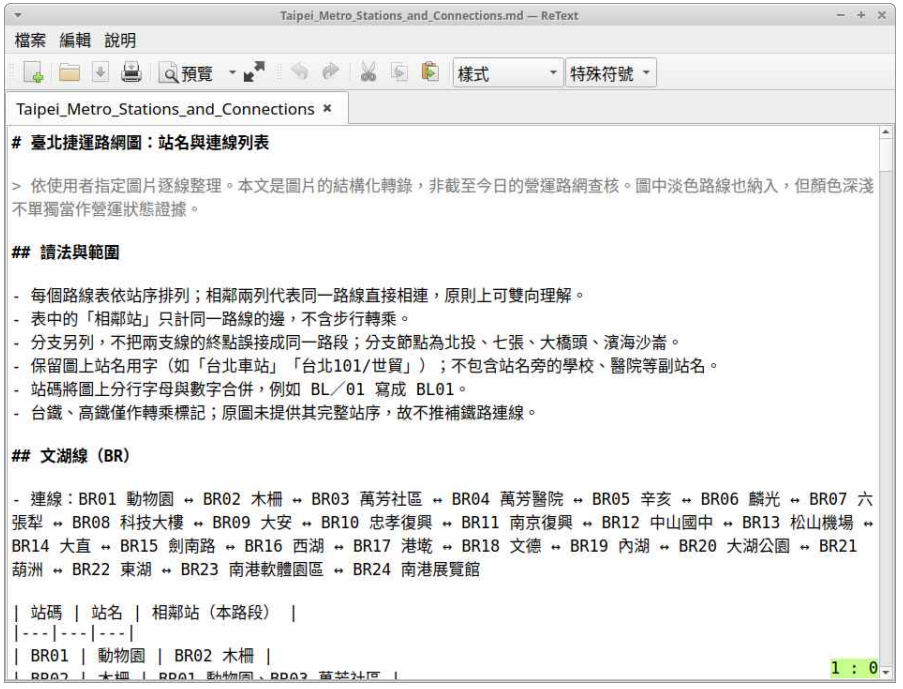
文湖線（BR）

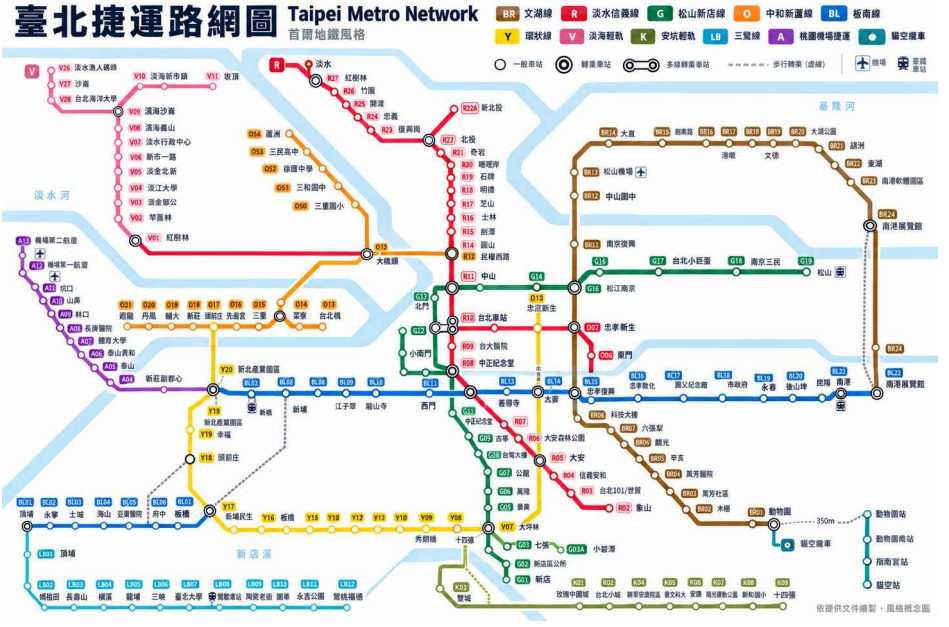
- 連線：BR01 動物園 ↔ BR02 木柵 ↔ BR03 萬芳社區 ↔ BR04 萬芳醫院 ↔ BR05 辛亥 ↔ BR06 麟光 ↔ BR07 六張犁 ↔ BR08 科技大樓 ↔ BR09 大安 ↔ BR10 忠孝復興 ↔ BR11 南京復興 ↔ BR12 中山國中 ↔ BR13 松山機場 ↔ BR14 大直 ↔ BR15 劍南路 ↔ BR16 西湖 ↔ BR17 港墘 ↔ BR18 文德 ↔ BR19 內湖 ↔ BR20 大湖公園 ↔ BR21 葫洲 ↔ BR22 東湖 ↔ BR23 南港軟體園區 ↔ BR24 南港展覽館

站碼	站名	相鄰站（本路段）
BR01	動物園	BR02 木柵
BR02	木柵	BR01 動物園、BR03 萬芳社區

1 : 0

左圖： Metro Taipei 官方路網圖、 FAIR USE ，右圖：將左圖透過 OpenAI ChatGPT-6.1 Sol 摘取其各站相連之事實資訊。





左圖： OpenAI ChatGPT-6.1 Sol 摘取 Metro Taipei 官方路網圖各站相連之事實資訊文件；
右圖：將左圖文件提供予 OpenAI ChatGPT-6.1 Sol 依首爾地鐵風格繪製之路網圖。

著作權法保護的標的為「表達的形式」

不及於背後的概念、思想

Coding Style, Painting Style, Writing Style

不受著作權保護、技法學習是能被接受的 ○

但累積式的抄寫程式碼或文句、圖畫片段 ╳

AI 重作者主張學習事實資訊

沒有著作權上的抄襲

抄 – 重製權、襲 – 改作權：針對既有表達

(1) 接觸

(2) 實質相似

最高法院 81 年台上字第 3063 號判決。

認定抄襲之要件有二，即（一）接觸，（二）實質相似。

成功的 CLEAN ROOM

(1) 盡量不要承襲表達、只學習概念或邏輯

(2) 避免最終產出實質近似

Substantial similarity

Crafting Apps: open

getartcraft.com/apps

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01 / CRAFTING APPS

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FOR LINUX · FLATPAK (X86_64)

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https://getartcraft.com/apps

2. 務實立場因應 AI 時代的變局

Jensen Huang (@Jen

x.com/JensenHuang

200%

Jensen Huang

1 則貼文

回覆

媒體

跟隨

Jensen Huang @JensenHuang · 7月24日

For my first post, I'm sharing a letter @NVIDIA signed on why open models matter.

AI will transform every industry, power every company, and be built by every country.

Open models strengthen safety and cybersecurity, accelerate innovation and diffusion, and enable sovereignty.

顯示更多



Open Weights and
American AI Leadership

July 24, 2026

In the 1980s, early open-source software pioneers challenged the prevailing belief that software would advance only if companies kept tight control over their code. This movement pushed for a transparent ecosystem where developers around the world could study, modify, and improve software. Software developed by the open-source community now supports most of the internet and underlies systems used by the world's largest technology companies, as well as the U.S. military and federal agencies conducting scientific research, cybersecurity, and other critical missions. Open source did more than lower the cost of software; it created a shared foundation of knowledge on which generations of American engineers and entrepreneurs built their institutional sovereignty.

The United States now faces a similar choice with artificial intelligence. Our AI leadership will be judged not by one frontier AI model, but by whether the United States builds a strong, open ecosystem that diffuses into every sector. This is essential for creating opportunities for innovation and prosperity across the country. It requires expanding access to AI, encouraging competition, robust application layers, and giving Americans greater control over the technology they rely on. Open-weight models—AI models that anyone can download, inspect, modify, and run on their own infrastructure—are an important part of that foundation because they make advanced AI more accessible, adaptable, and widely available.

Open weights expand access to the AI economy. Startups, established businesses, universities, and

sovereignty and prosperity.

To be sure, open weights carry real and distinct risks. Once released, the weights are beyond the original developer's control, and modified versions are difficult to trace or reverse. But the right response to this risk is not to prohibit open weights. In a world where cybersecurity attackers use advanced AI, defenders need access to models with comparable capabilities so they can detect, simulate, and respond to emerging threats. Open models broaden defensive capability, increase transparency, and allow vulnerabilities to be discovered and remediated across many teams.

In fact, openness may be one of the most important paths to AI safety and security. Relying solely on closed models is not inherently safe: they can be breached, misused, or fail in ways that outsiders cannot detect. And concentrating advanced AI capabilities behind a small number of closed models compounds that risk. It results in a small number of single points of failure, weakens competition, and leaves critical technology in the hands of a few providers. Open weight models, on the other hand, allow a broad community of researchers and developers to examine their behavior, identify vulnerabilities, develop safeguards, and improve them over time. Just as open-source software demonstrated that transparency can be more secure than obscurity, AI safety may depend on giving more people the ability to test and strengthen the models on which society relies. It allows for rigorous benchmarking and evaluation, red teaming, and protections tied to real and demonstrated harms rather than assuming that closed systems

The age of AI can be one of prosperity. With the right choices, open weight AI can expand opportunity, strengthen competition, extend American technological leadership, mitigate risk, and ensure that the benefits of this extraordinary technology are shared broadly across our economy. That future is worth building, and the United States should lead in building it.

https://x.com/JensenHuang/status/2080643682408321103

X 上的 Jensen Huang

x.com/JensenHuang/status/2080643682408321103/photo/1

200%



Open Weights and
American AI Leadership

July 24, 2026

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Open weights expand access to the AI economy. Startups, established businesses, universities, and public institutions can build on advanced models without training one from scratch or paying frontier-model prices for every task. Open weights let every organization match the right model to the right job at the right cost, reserving frontier-scale capability for genuine frontier problems and running efficient, specialized models everywhere else. That discipline is what will make AI economically sustainable as its use scales into the billions of everyday tasks. America wins the AI era by diffusing it into the workflows of factories, hospitals, farms, classrooms, and main street businesses.

Open weights also strengthen competition and competition is what keeps the gains of AI broadly shared rather than concentrated in a few hands. By allowing many organizations to build, adapt, and deploy advanced models, open weights create rivalry not only among model developers but across cloud chips,

1.5萬 3.8萬 16萬 5,814萬

Jensen Huang
@JensenHuang

跟隨

顯示翻譯

For my first post, I'm sharing a letter @NVIDIA signed on why open models matter.

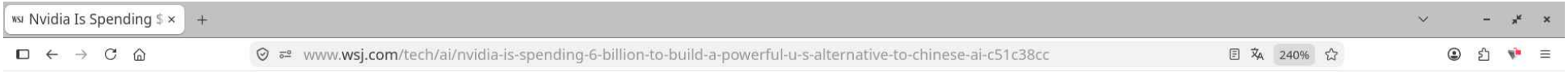
AI will transform every industry, power every company, and be built by every country.

Open models strengthen safety and cybersecurity, accelerate innovation and diffusion, and enable sovereignty.

The world needs both frontier closed models and frontier open models.

images.nvidia.com/pdf/Open-Weigh...

https://x.com/JensenHuang/status/2080643682408321103



THE WALL STREET JOURNAL.

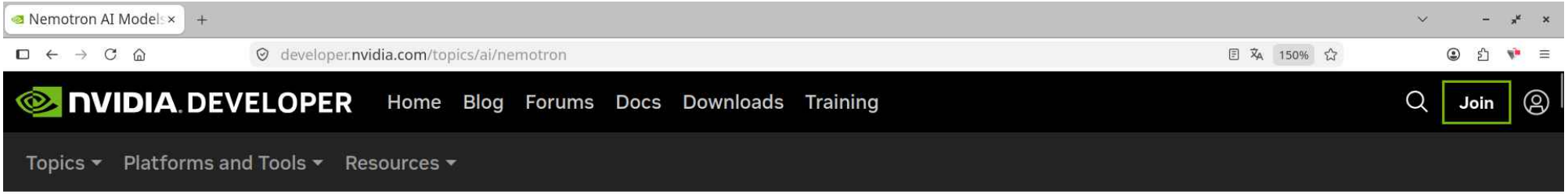
Nvidia Is Spending $6 Billion to Build a Powerful U.S. Alternative to Chinese AI

A sweeping agreement with startup Poolside aims to build an open AI ecosystem in the U.S. to compete with Chinese heavyweights and American AI giants

By Robbie Whelan
Aug. 22, 2026 8:00 pm ET

Aa 298 Listen (2 min)

https://www.wsj.com/tech/ai/nvidia-is-spending-6-billion-to-build-a-powerful-u-s-alternative-to-chinese-ai-c51c38cc



Topics / Artificial Intelligence / NVIDIA Nemotron

On this page

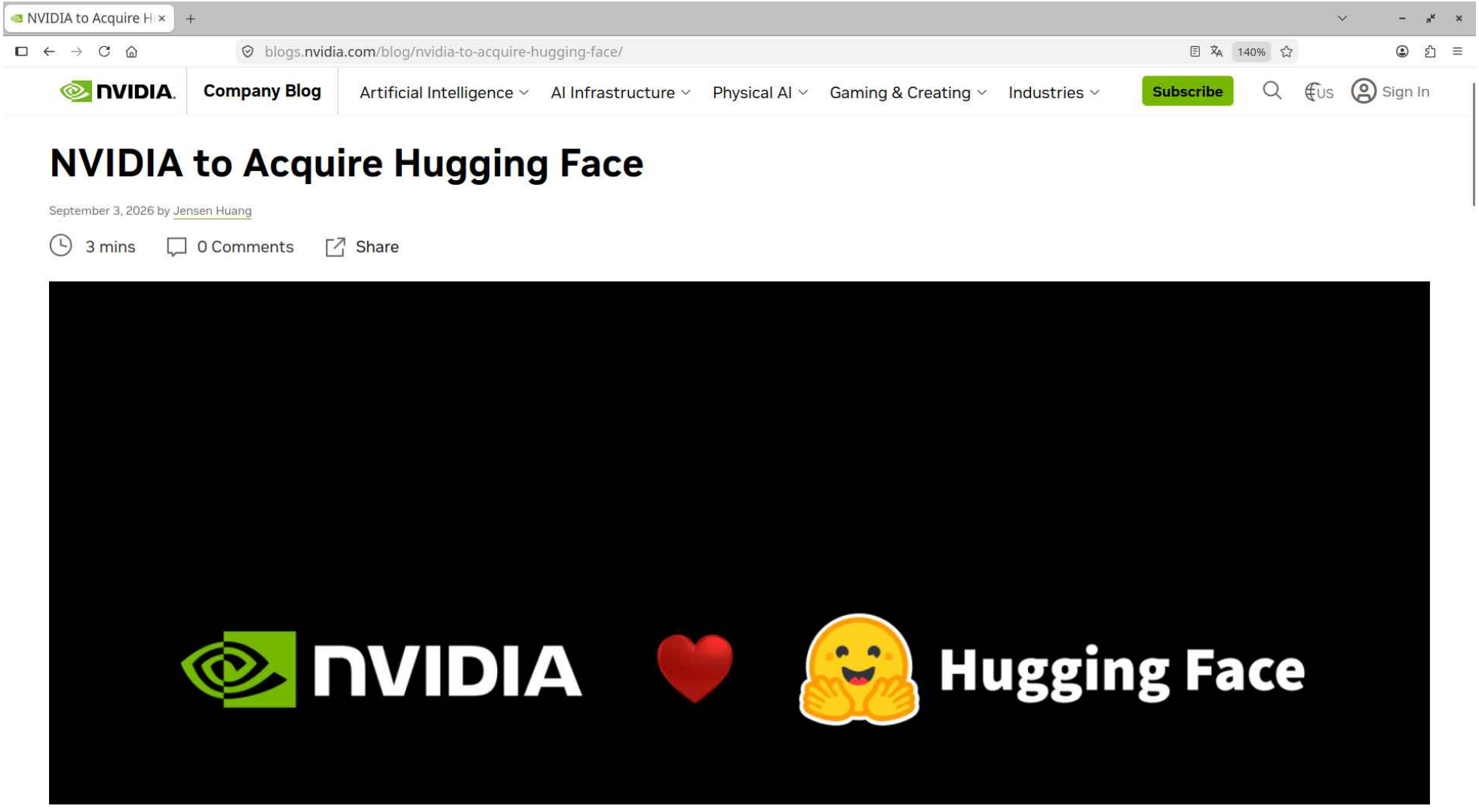
- NVIDIA Nemotron Models
- NVIDIA Nemotron Datasets
- Developer Tools
- Introductory Resources
- Starter Kits
- Inference Service Providers
- More Resources
- Ethical Considerations
- Get Started

NVIDIA Nemotron

NVIDIA Nemotron™ is a family of open models with open weights, training data, and recipes, delivering leading efficiency and accuracy for building specialized AI agents.

Explore Models | **Forum** | **Tutorials**

https://developer.nvidia.com/topics/ai/nemotron



https://blogs.nvidia.com/blog/nvidia-to-acquire-hugging-face/



https://www.youtube.com/watch?v=xPh-5P4XH6o

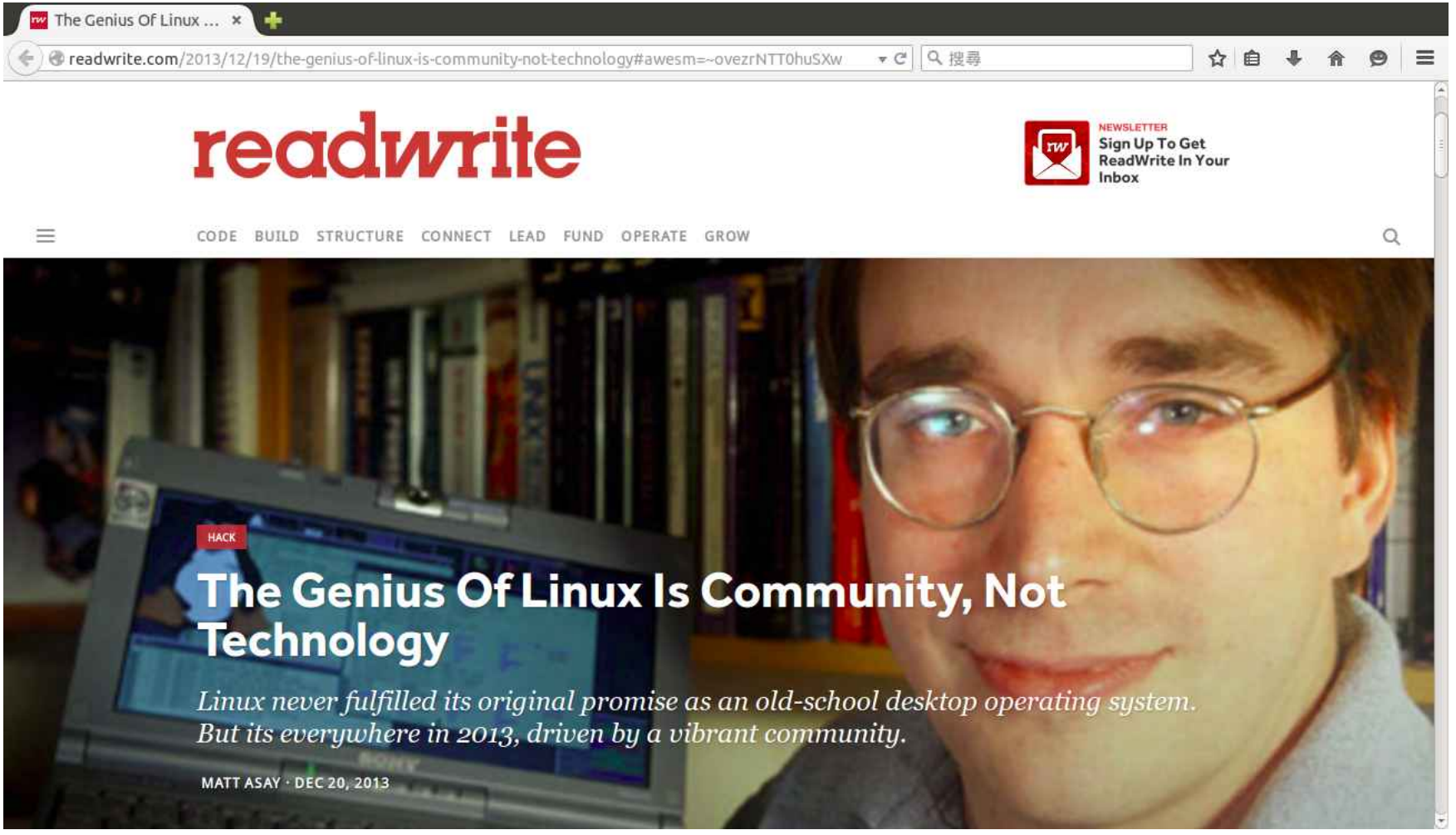


https://www.youtube.com/watch?v=xPh-5P4XH6o

2. 1. 開源不滅體、相當期間還不會

不是為了商用而啟動開源
而是產生效益後擴大商用

從歷史觀點來說



http://readwrite.com/2013/12/19/the-genius-of-linux-is-community-not-technology#awesm=~ovezrNTT0huSXw

Company	Changes	Total
None	12,550	13.6%
Red Hat	9,483	10.2%
Intel	8,108	8.8%
Texas Instruments	3,814	4.1%
Linaro	3,791	4.1%
SUSE	3,212	3.5%
Unknown	3,032	3.3%
IBM	2,858	3.1%
Samsung	2,415	2.6%
Google	2,255	2.4%
Vision Engraving Systems	2,107	2.3%
Consultants	1,529	1.7%
Wolfson Microelectronics	1,516	1.6%
Oracle	1,248	1.3%
Broadcom	1,205	1.3%

Company	Changes	Total
NVidia	1,192	1.3%
Freescale	1,127	1.2%
Ingics Technology	1,075	1.2%
Renesas Electronics	1,010	1.1%
Qualcomm	965	1.0%
Cisco	871	0.9%
The Linux Foundation	840	0.9%
Academics	831	0.9%
AMD	820	0.9%
Inktank Storage	709	0.8%
NetApp	707	0.8%
LINBIT	705	0.8%
Fujitsu	694	0.7%
Parallels	684	0.7%
ARM	664	0.7%

http://readwrite.com/2013/12/19/the-genius-of-linux-is-community-not-technology#awesm=~ovezrNTT0huSXw

Open Source

當代跨界合作的有效手段

Ecosystem

建構開放標準統合
軟硬整合的生態系

軟體生態系（Ecosystem）

-- 以開源為核心協作基礎

-- 善用 AI 工具快速搭建特色功能

-- prompt/agent engineering 的 know-how

為新式護城河


Prompt
Prompt
Agent
Tools
Workflow
prompt/agent
engineering 的 know-how
為新式護城河
用 AI 工具快速搭建特色功能
開源核心基礎設施
以開源為核心協作基礎
2026.10.28 Made with ChatGPT-6 Sol by Lucien C.H. Lin, CC0-1.0.

2. 2. 不要重新創作輪子

Don't Reinvent the Wheel

貼文



高市早苗
@takaichi_sanae

顯示翻譯

皆様に、今夜に対応して頂きたい大至急のお願いです。

多くのウェブサイトで使用されているPHPに関し、PHPのセキュリティチームが、重大な２件の脆弱性に関する注意喚起を行っています。

公開しているウェブサイトでPHPを使用しているか確認し、今夜、10月21日午後11時（日本時間）に公開される修正パッチについて、可及的速やかに適用できるよう準備をお願いします。

修正パッチを速やかに適用することが困難な場合は、例えばウェブサイト等を一時的に停止させることも、リスクを低減させるための有効策の一つと考えられます。

国家サイバー統括室のXアカウントでも関係する情報を発信しています

登入或註冊 X 帳戶
看看正在發生什麼事並加入對話
Continue with phone
使用 Apple 帳戶繼續
使用 Google 帳戶繼續
或
使用使用者名稱或電子郵件登入
掃描以取得應用程式
相關人士
高市早苗
@takaichi_sana
衆議院議員 自由
挙区支部長
※総理在任中の投稿は、一部広報スタッフによるものを含みます。

2026 年 10 月資安公告｜逐項查核

截至 2026.10.28 ｜ 官方公告優先

#	平台 / 專案	經查核的重點資訊（含修正說明）	查核狀態
1	**Linux kernel**	KSMBD 相關 6 項漏洞（含遠端程式碼執行等）。最高嚴重度 **9.0（待核實）**。	待核實
2	**Node.js**	**2026/10/21** 發布安全更新，涵蓋三個分支，共 **10** 個 CVE。	**部分確認**
3	**Python**	**2026/10/25** 發布更新；涉及 CVE-2026-115557、CVE-2026-114583。	**部分確認**（日期補正）
4	**Go**	**2026/10/19** 發布緊急版 **1.27.3／1.26.10**；封鎖 eMudhra 中繼憑證。	**已確認**
5	**Rust**	**2026/10/20** 發布多項 RustSec 通報，包含 rustls-webpki、wasmtime 等。	**部分確認**
6	**Java**	Oracle CPU（2026 年 10 月）：共 **55 項** Java SE 安全修補。	**已確認**
7	**PHP**	PHP2Shell；**CVE-2026-109618**、**CVE-2026-109619**。	**已確認**
8	**LiteLLM**	**1.107.0** 遭投毒：PyPI、Docker Hub、GHCR 等平台發現惡意套件。	**已確認**
9	**GitLab**	涉及 **12 項**問題；其中包含高嚴重度（原圖標示 10.0）與相關 CVE 編號，尚待核實。	待核實
10	**Chrome**	**2026/10/20** 發布 Chrome 156；共 **353 項**安全修補，其中 **6 項 Critical**。	**已確認**
11	**Plex**	Plex2Shell；修補版 **1.43.3.10861**。部分漏洞已被利用。	**部分確認**
12	**Cisco**	**2026/10/21** 發布多項公告；CVSS 最高 **9.8**；共 **14** 份公告、**34** 個 CVE（數量待核實）。	**部分確認**
13	**Railway**	**2026/10/21** 通報：環境變數可能遭未授權存取。	**已確認**

● **已確認**：官方公告可確認，資訊大致正確。 ● **部分確認**：部分內容已查證，或日期／版本經補正。 ● **待核實**：仍需進一步查證，包含細節、數量或 CVE 編號等。

備註：eMudhra 為跨生態系憑證事件；CVSS 與投毒／入侵事件不可直接比較。

2026.10.28 Made with ChatGPT-6 Sol by Lucien C.H. Lin, CC0-1.0.

EU Cyber Resilience Act, CRA

Manufacturers shall, upon identifying a vulnerability in a component, including in an open source component, which is integrated in the product with digital elements, report the vulnerability to the person or entity maintaining the component.

ETSI EN 303 645/ 歐洲電信標準協會

Security by Design-- 基於安全的設計

1. 不要綁定預設通用密碼 2. 弱點通報的管理與執行 3. 保持軟體更新

4. 機敏安全參數的確保 5. 採安全方式通訊 6. 減少暴露在攻擊面的可能

7. 確保軟體完整狀態 8. 確保個人資料儲放安全 9. 系統抗中斷的韌性

10. 透過遙測數據檢測系統異常 11. 便利使用者刪除個人資料

12. 簡化暨強化設備安裝和維護的步驟 13. 驗證輸入資料

法律責任的轉變：在 CRA 框架下，將 FOSS 整合進商業產品的「製造商」，其法律責任與過往有何本質上的不同？


Made with OpenAI GPT-5.6 Sol by Lucien C.H. Lin & Ramus Lin, CC0-1.0.

《優生保健法》

《兒童及少年福利與權益保障法》



https://sutian.moe.edu.tw/zh-hant/su/26974/

IoT / Digital Elements 商品的資安維護（擔保期間的修復、通報、告知）

1. 修復： Expected lifetime ；原則至少 5 年
2. 通報： ENISA ／ CSIRT - Single Reporting Platform

   24hr ／ 72hr ／ 14 days （漏洞）； 1 month （嚴重事件）
3. 告知： Affected users

https://digital-strategy.ec.europa.eu/en/library/commission-publishes-new-guidance-support-timely-cyber-resilience-act-implementation

歐盟《 Cyber Resilience Act 》（ CRA ）

1. Open-source Software Steward

(1) 維運資安政策 (2) 配合市場監督 (3) 提供相關文件

(4) 重大資安事件或已遭利用漏洞的通報與公告 (5) 不適用行政罰鍰（ administrative fines ）

2. Open-source Software 資安認證緩衝

- 一般產品 / 重要產品 Class I / 重要產品 Class II / 關鍵產品 Critical
- 數位元素 / 身份存取、密碼管理 / 防入侵、防竄改機制 / 安全盒、智慧閘道總樞
- 資安可自評 / 建立流程標準可自評或第三方評鑑 / 第三方評鑑 / 指定資安認證方案

技術文件開源可及者、 Class I + Class II 可轉為自評

Vulnerability Disclosure

1. 漏洞通報義務 --2026.9

2. 盤點產品線裡哪些 FOSS 已有 Steward

ASF / Eclipse Foundation / The Linux Foundation / Python Software Foundation / Mozilla Foundation / Document Foundation / KDE e.V. / GNOME Foundation / OpenJS Foundation / Rust Foundation / OpenInfra Foundation / OSGeo Foundation

3. 盤點產品線裡哪些 FOSS 已有 Commercial Support(試舉 10 例)

Red Hat （ IBM ） / SUSE / Canonical / GitLab / Percona / Confluent / Elastic / MariaDB plc / Docker / IBM （ HashiCorp ）

4. 保持所使用開源元件或商業授權元件的版本號

5. 資安補正透過溯源 (upstream) 方式實踐

6. 資安修復 (可委外) / 資安通報 (可部份委外) / 資安告知 (應承擔)

EU Cyber Resilience Act Stewardship Guidelines for Red Hat Supported Open Source Projects

PDF download - EU Cyber Resilience Act Stewardship Guidelines for Red Hat Supported Open Source Projects.

Last updated: June 12, 2026

Introduction to the CRA Stewardship

The enactment of the European Union's Cyber Resilience Act (CRA) marks a definitive turning point in the governance of the global software supply chain. For decades, the open source ecosystem has operated on a foundation of voluntary collaboration, best-effort security practices, and a distinct lack of warranty or liability. The CRA fundamentally alters this landscape by introducing statutory cybersecurity requirements for products with digital elements (PDEs) placed on the European market. While the regulation primarily targets commercial manufacturers who monetize software, the interconnected nature of modern software development means that upstream open source projects—specifically those that serve as the foundation for commercial enterprise products—can no longer operate in a regulatory vacuum.

The legislation introduces a new legal actor: the Open Source Software Steward. Read more in the Red Hat blog. This role was specifically architected by EU legislators to recognize the critical infrastructure provided by open source foundations and corporate sponsors, while simultaneously shielding individual contributors and non-commercial projects from the weight of full manufacturer compliance. For the **15 projects** within the scope of this guidance - **Ansible, Fedora, CentOS Stream, Konflux, Quay, StackRox, OKD, crun, hermeto, IIB, Maistra, OSbuild, Pulp, RamaLama, sssd** - Red Hat has formally identified itself as an Open Source Software Steward. This designation is not merely a label; it is an acknowledgment of Red Hat's systematic, sustained support for these communities and its intent to ensure their viability.

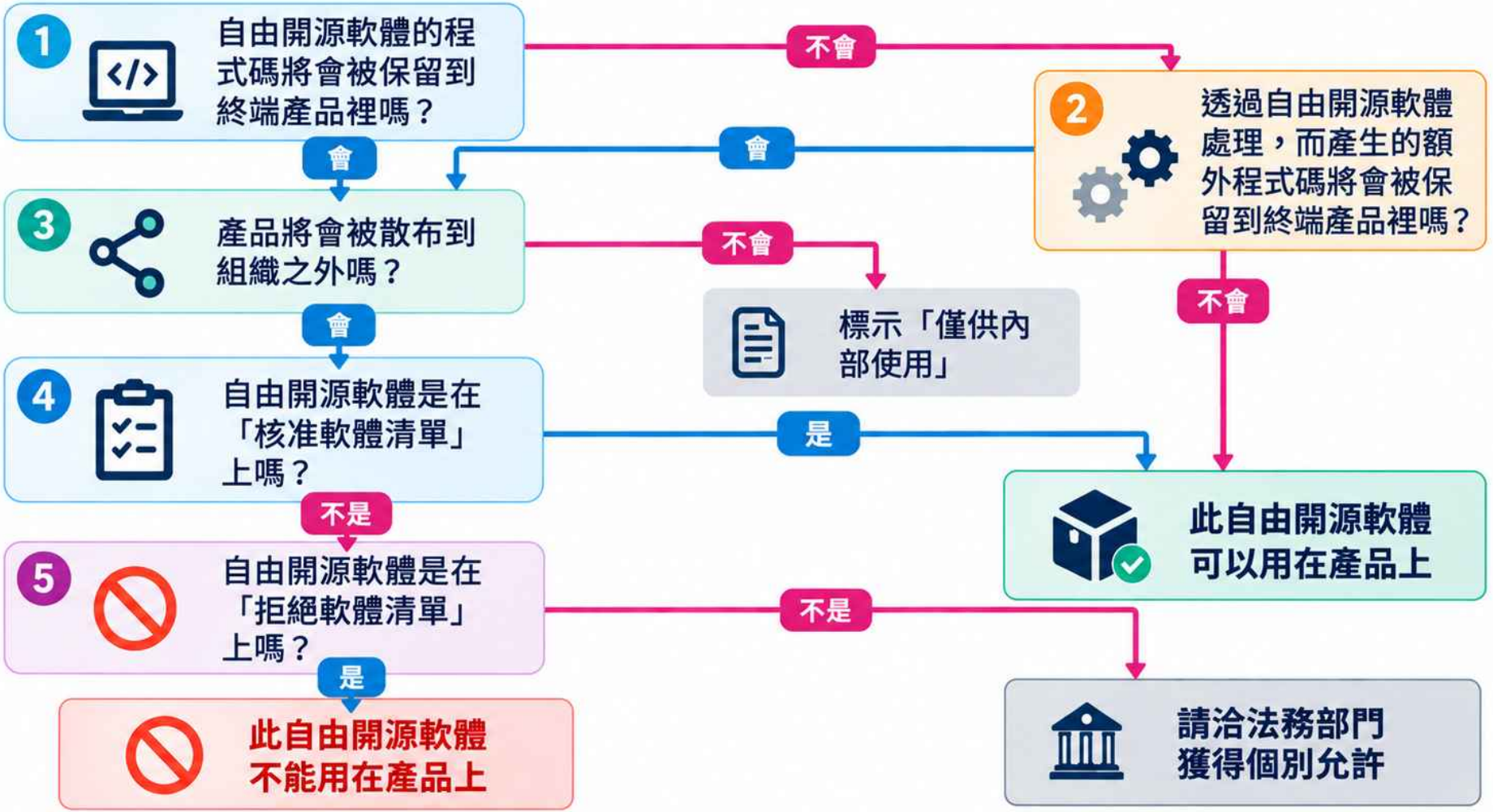
以開源協作力量導入

透明可課責的資安應用生態

2. 3. AI Compliance Engineering

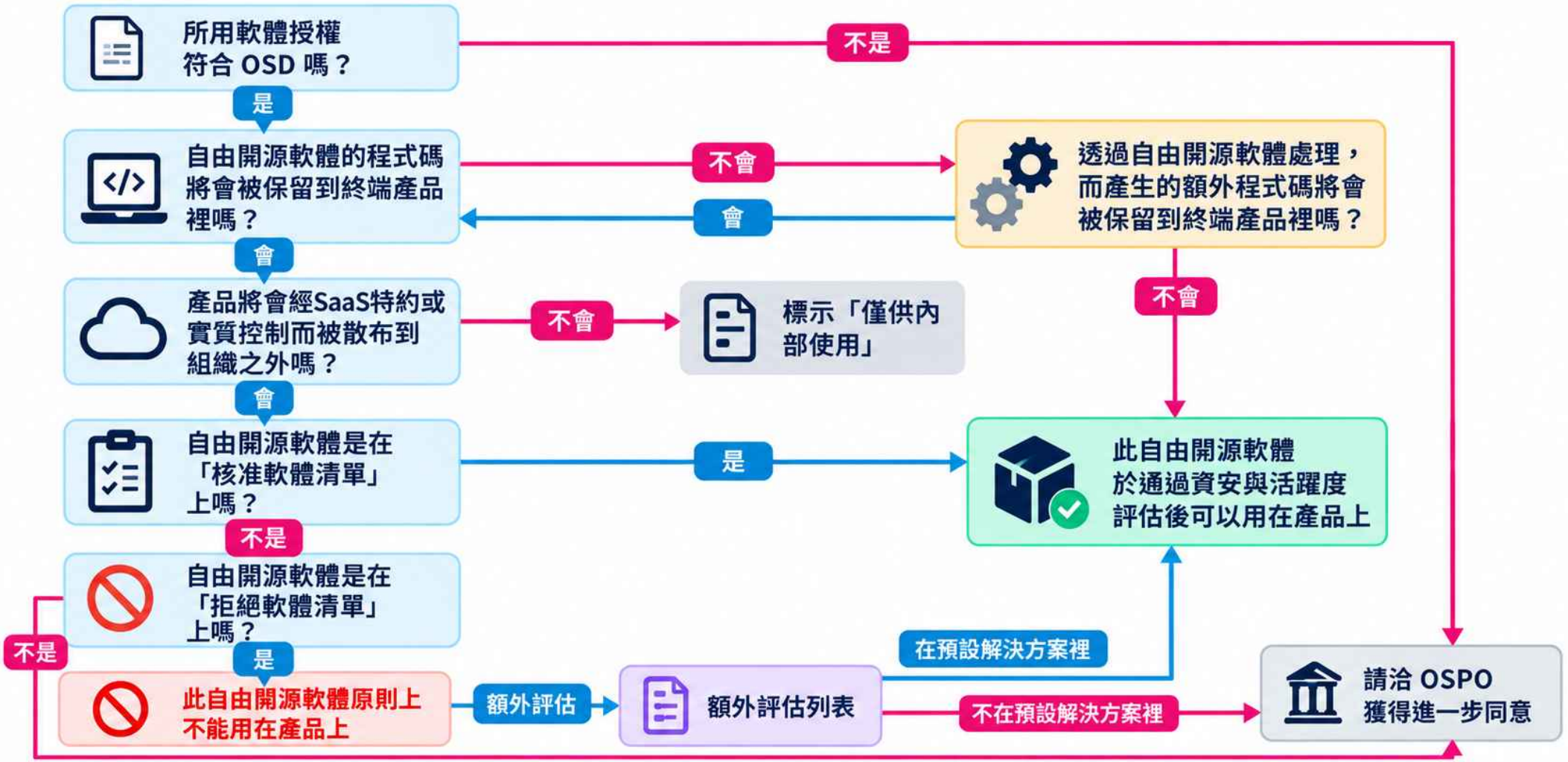
AI 合規開發工程

自由開源授權合規管理簡式流程圖 - 基本概念



此流程圖內含於 Armijn Hemel 及 Shane Coughlan 原作「實用的 GPL 合規手冊」，2026.10.28 Converted with ChatGPT-6 Sol by Lucien C.H. Lin, CCO-1.0.

C2 自由開源授權合規管理簡式流程圖 - Taiwan特化版



原圖啟發於 Armijn Hemel & Shane Coughlan 原著「實用的 GPL 合規手冊」，2026.10.28 Made with ChatGPT-6 Sol and modified by Lucien C.H. Lin, CC0-1.0.

企業使用 AI 進行程式開發

(1) 是否允許？

(2) 如何降低風險？

Github Copilot → Suggestion

(1)telemetry data(程式寫作偵測資料的收集)

(2) 專利演算法

(3)telemetry 功能可關閉但無實質意義

Github Copilot 資通訊產業管理要則 - 早期常見一般規範

(1)Github Copilot 可以用、但必須登錄註記它的使用狀態；

(2) 重點專案要用必須走核可制，所謂重點專案就是涉及公司專利技術，或被指定是主力開發產品，而被定位重點專案，這些專案要使用到 Github Copilot 時，走的是核可制，必須明確得到核可，才可以去使用；

(3) 一般專案走備查制，解放工程人員的生產力，但使用狀況必須於公司指定的電子簿冊進行登錄，相關登錄資訊公司也不需要時時查察，但需要確認時管理和研發主管可以查閱並確認；

(4) 開啟 Github Copilot 提供的 Duplicate Detection 偵測功能，這個功能是 Github Copilot 在美國發生訴訟後， Github 火速加上的新功能，意思就是當 Github Copilot 吐 Suggestions 給軟體開發工程師，工程師也使用了這些被建議的程式碼，之後再加上一個自動化功能，就是幫忙查驗最後的程式碼是否和目前 Github 上託管的主流他人專案具有表達的近似性，若是高度相似，這個偵測功能會建議部份程式碼再另行改寫，以避免程式碼表達上過於近似有抄襲疑慮。

(5) 要求開發人員就最後提交給公司的程式碼進行人力的閱讀和確認。

企業使用 AI 進行程式開發

(1) 是否允許？

(2) 如何降低風險？

AI 程式輔助開發工具
提供應用相關擔保嗎

Github Copilot/ Claude Code/ OpenAI Codex

1. 免費版 - 沒有！包括開源或開放權重版本

2. 付費版 - 有限度的有

(1) 第三方請求抗辯機制

(2) 限定範圍補償機制

若涉入這些範圍、不賠！

(1) 第三方請求抗辯機制

- 出事沒講、和解不找、隱瞞事實

(2) 限定範圍補償機制

- 可歸責於客戶（明知違法、自行抄襲、不開偵測）

→ 程序紀錄與版本控制系統非常重要

WINE Clean Room 的借鏡



https://www.winehq.org/

WineHQ Clean Room Guidelines DO

1. 當需要瞭解某個 Windows API 函式的具體行為時，應優先撰寫測試程式進行驗證，並將相關成果納入 Wine 的相容性測試套件。
2. 參考 MSDN 文件原則上並無不可，但其內容未必完全準確，仍應審慎評估。
3. 為降低法律與技術污染風險，若能透過測試程式確認行為，即不建議再查閱 Microsoft 的官方文件或標頭檔。
4. 如對適當作法有所疑慮，請於 wine-devel 郵件論壇中與社群討論。

https://gitlab.winehq.org/wine/wine/-/wikis/Clean-Room-Guidelines

WineHQ Clean Room Guidelines Don't

1. 不要撰寫僅用來列印（ print ）內部資料表（ internal table ）內容的測試程式。
2. 不要對 Microsoft 的程式碼進行反組譯（ disassembly ）。
3. 不要查閱任何 Microsoft 原始碼，即使該原始碼係依某種授權條款公開釋出。例如，不要查閱隨 Microsoft C 編譯器附帶之 C Runtime Library 原始碼。但有一項例外：若相關程式碼係以 MIT License 或其他與 LGPL 相容之授權條款釋出，則可在適當標示來源（ attribution ）的前提下查閱及引用其內容。
4. 不要對原生（ native ）元件使用 +relay 除錯模式。一般而言，應盡可能避免透過原生元件進行除錯，因為這可能洩漏該等元件實際呼叫了哪些函式，進而取得不應取得的實作資訊。
5. 不要檢視 Microsoft 程式碼的除錯符號（ debug symbols ）。
6. 也不要查閱 ReactOS 的程式碼（甚至連標頭檔都不要）。 ReactOS 有相當部分程式碼係透過不適用於 Wine 的逆向工程方法所產生，因此對 Wine 專案而言，該等程式碼不應作為可接受的資訊來源。
7. 不要使用大型語言模型（ LLM ）工具來產生程式碼。因為無法保證該 LLM 的訓練資料符合 Wine 的 Clean Room Guidelines ，也無法保證其輸出內容與 LGPL 授權條款相容。

https://gitlab.winehq.org/wine/wine/-/wikis/Clean-Room-Guidelines

AI Compliance Engineering

1.公司政策：容許列表 / 拒絕列表

2.請 AI 找 bug 、補洞、請 AI 資安弱掃→工具性使用

3.不要用 AI 整隻轉譯第三方程式碼

4.必要時請 AI 分析其互動邏輯、再依此邏輯重新寫程式

5.毋須所有程式重新寫、 MIT 或寬鬆的 APIs 直接用

6.做好版本控制紀錄的保存以供必要驗證

請 AI 協助條列分析程式碼要點

→ 概念、事實資訊之學習不受著作保護或限制

→ 而非直接下令轉譯他人程式、承襲其表達

知識可以學習、表達不宜直接完全承襲！

1. 分析的結果是否單純為**知識點** / **互動邏輯**
2. 原程式的**表達是否仍在**？
3. 會否構成為原軟體的**改作**？
4. 指示先就原軟體架構解構後進行**架構學習**！

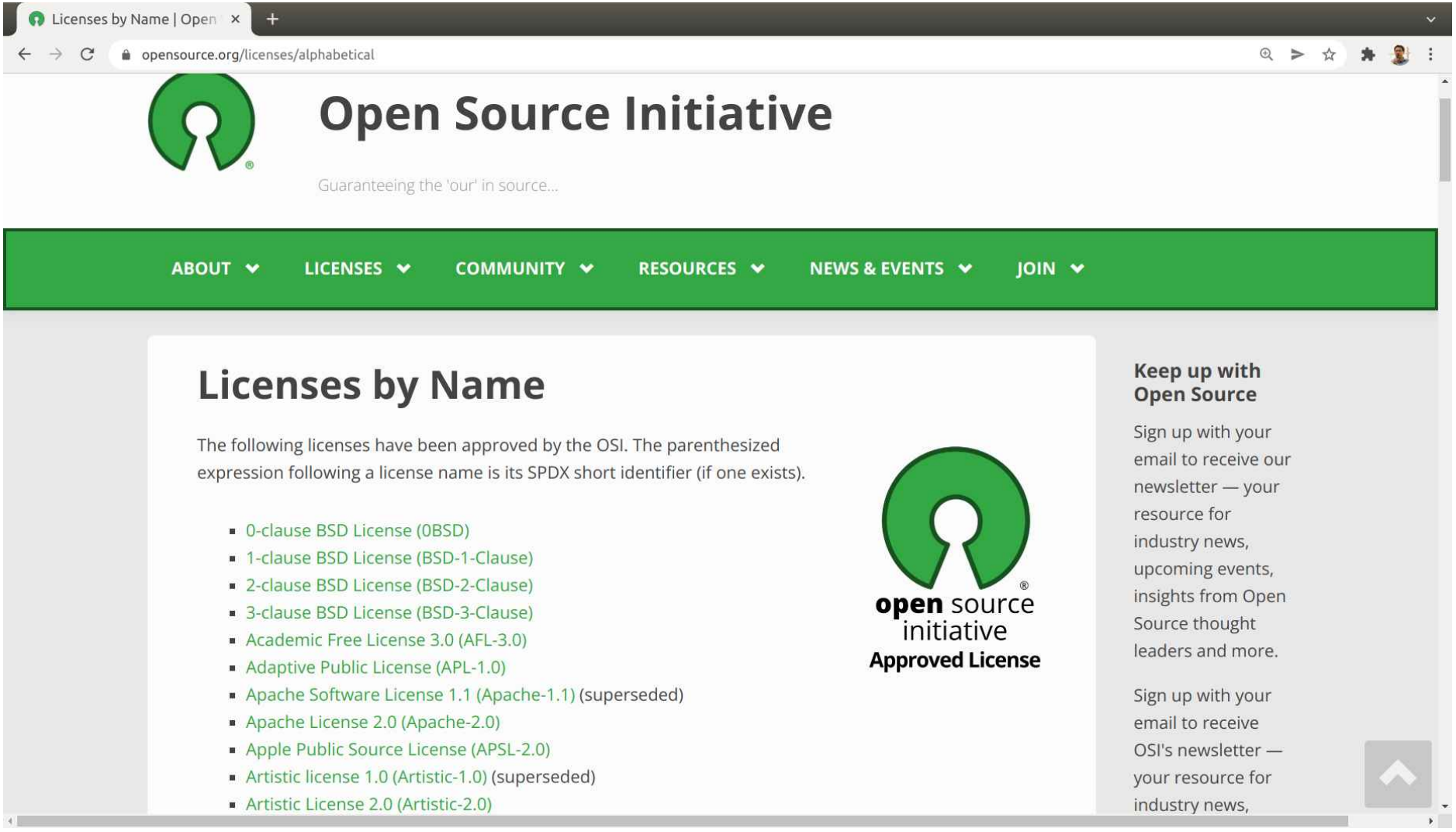
版本控制— Version Control

版本控制（英語： Version control ）是維護工程藍圖的標準做法，能追蹤工程藍圖從誕生一直到定案的過程。此外，版本控制也是一種軟體工程技巧，藉此能在軟體開發的過程中，確保由不同人所編輯的同一程式檔案都得到同步。

包括如何和 AI 之間 prompt / agent engineering 的文件

3. 善用真開源作為協作基底

可以被自由修改、自由散布，沒有使用期間、範圍、目的限制的軟體專案，就是 / 才是真正的自由開源軟體專案。



https://opensource.org/licenses/alphabetical

0-clause BSD License (0BSD), 1-clause BSD License (BSD-1-Clause) ,2-clause BSD License (BSD-2-Clause) ,3-clause BSD License (BSD-3-Clause) ,Academic Free License 3.0 (AFL-3.0) ,Adaptive Public License (APL-1.0) ,Apache Software License 1.1 (Apache-1.1) (superseded) ,Apache License 2.0 (Apache-2.0) ,Apple Public Source License (APSL-2.0) ,Artistic license 1.0 (Artistic-1.0) (superseded) ,Artistic License 2.0 (Artistic-2.0) ,Attribution Assurance License (AAL) ,Boost Software License (BSL-1.0) ,3-clause BSD License ,2-clause BSD License ,1-clause BSD License ,0-clause BSD license ,BSD-3-Clause-LBNL ,BSD+Patent (BSD-2-Clause-Patent) ,CERN Open Hardware Licence Version 2 - Permissive ,CERN Open Hardware Licence Version 2 - Weakly Reciprocal ,CERN Open Hardware Licence Version 2 - Strongly Reciprocal ,CeCILL License 2.1 (CECILL-2.1) ,Common Development and Distribution License 1.0 (CDDL-1.0) ,Common Public Attribution License 1.0 (CPAL-1.0) ,Common Public License 1.0 (CPL-1.0) (superseded) ,Computer Associates Trusted Open Source License 1.1 (CATOSL-1.1) ,Cryptographic Autonomy License v.1.0 (CAL-1.0) ,CUA Office Public License Version 1.0 (CUA-OPL-1.0) (retired) ,Eclipse Public License 1.0 (EPL-1.0) (superseded) ,Eclipse Public License 2.0 (EPL-2.0) ,eCos License version 2.0 (eCos-2.0) ,Educational Community License, Version 1.0 (ECL-1.0) (superseded) ,Educational Community License, Version 2.0 (ECL-2.0) ,Eiffel Forum License V1.0 (EFL-1.0) (superseded) ,Eiffel Forum License V2.0 (EFL-2.0) ,Entessa Public License (Entessa) ,EU DataGrid Software License (EUDatagrid) ,European Union Public License 1.2 (EUPL-1.2) (links to every language's version on their site) ,Fair License (Fair) ,Frameworx License (Frameworx-1.0) ,Free Public License 1.0.0 (0BSD) ,GNU Affero General Public License version 3 (AGPL-3.0) ,GNU General Public License version 2 (GPL-2.0) ,GNU General Public License version 3 (GPL-3.0) ,GNU Lesser General Public License version 2.1 (LGPL-2.1) ,GNU Lesser General Public License version 3 (LGPL-3.0) ,Historical Permission Notice and Disclaimer (HPND) ,IBM Public License 1.0 (IPL-1.0) ,Intel Open Source License (Intel) (retired) ,IPA Font License (IPA) ,ISC License (ISC) ,Jabber Open Source License (retired) ,LaTeX Project Public License 1.3c (LPPL-1.3c) ,Lawrence Berkeley National Labs BSD Variant License (BSD-3-Clause-LBNL) ,Licence Libre du Québec – Permissive (LiLiQ-P) version 1.1 (LiliQ-P) ,Licence Libre du Québec – Réciprocité (LiLiQ-R) version 1.1 (LiliQ-R) ,Licence Libre du Québec – Réciprocité forte (LiLiQ-R+) version 1.1 (LiliQ-R+) ,Lucent Public License ("Plan9"), version 1.0 (LPL-1.0) (superseded) ,Lucent Public License Version 1.02 (LPL-1.02) ,Microsoft Public License (MS-PL) ,Microsoft Reciprocal License (MS-RL) ,MirOS Licence (MirOS) ,MIT License (MIT) ,MIT No Attribution License (MIT-0) ,MITRE Collaborative Virtual Workspace License (CVW) (retired) ,Motosoto License (Motosoto) ,Mozilla Public License 1.0 (MPL-1.0) (superseded) ,Mozilla Public License 1.1 (MPL-1.1) (superseded) ,Mozilla Public License 2.0 (MPL-2.0) ,Mulan Permissive Software License v2 (MulanPSL - 2.0) ,Multics License (Multics) ,NASA Open Source Agreement 1.3 (NASA-1.3) ,Naumen Public License (Naumen) ,Nethack General Public License (NGPL) ,Nokia Open Source License (Nokia) ,Non-Profit Open Software License 3.0 (NPOSL-3.0) ,NTP License (NTP) ,OCLC Research Public License 2.0 (OCLC-2.0) ,Open Group Test Suite License (OGTSL) ,Open Software License 1.0 (OSL-1.0) (superseded) ,Open Software License 2.1 (OSL-2.1) (superseded) ,Open Software License 3.0 (OSL-3.0) ,OpenLDAP Public License Version 2.8 (OLDAP-2.8) ,OSET Public License version 2.1 ,PHP License 3.0 (PHP-3.0) (superseded) ,PHP License 3.01 (PHP-3.01) ,The PostgreSQL License (PostgreSQL) ,Python License (Python-2.0) (overall Python license) ,CNRI Python license (CNRI-Python) (CNRI portion of Python License) ,Q Public License (QPL-1.0) ,RealNetworks Public Source License V1.0 (RPSL-1.0) ,Reciprocal Public License, version 1.1 (RPL-1.1) (superseded) ,Reciprocal Public License 1.5 (RPL-1.5) ,Ricoh Source Code Public License (RSCPL) ,SIL Open Font License 1.1 (OFL-1.1) ,Simple Public License 2.0 (SimPL-2.0) ,Sleepycat License (Sleepycat) ,Sun Industry Standards Source License (SISSL) (retired) ,Sun Public License 1.0 (SPL-1.0) ,Sybase Open Watcom Public License 1.0 (Watcom-1.0) ,Universal Permissive License (UPL) ,University of Illinois/NCSA Open Source License (NCSA) ,Upstream Compatibility License v1.0 ,Unicode Data Files and Software License ,The Unlicense ,Vovida Software License v. 1.0 (VSL-1.0) ,W3C License (W3C) ,wxWindows Library License (WXwindows) ,X.Net License (Xnet) ,Zero-Clause BSD (0BSD) ,Zope Public License 2.0 (ZPL-2.0) (superseded) ,Zope Public License 2.1 (ZPL-2.1) ,zlib/libpng license (Zlib)

OSI-approved Licenses sorted by name by the date 2021.10.18: https://opensource.org/licenses/alphabetical

開源授權的六大特性

符合 FSF 自由軟體定義或 OSI 開放源碼定義者

1 、非專屬授權 non-exclusive

2 、不可撤回 irrevocable

3 、免授權金 royalty-free

4 、不附隨擔保 no warranties

5 、不限制目的、時間、地域

for any purpose, perpetual, worldwide

6 、使用、重製、修改、發布

freedom to run, copy, modify, and redistribute

1. 非專屬授權 non-exclusive

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4. 不附隨擔保 no warranties

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for any purpose, perpetual, worldwide

6. 使用、重製、修改、發布

freedom to run, copy, modify, and redistribute

開源軟體：

1. 只要合規、取得的開源授權永久不會撤回
2. 使用規則就是依取得時那份條款
3. 要求註引出處、或必要時相同方式分享，但原則上不會有其他限制。



https://archive.fosdem.org/2024/events/attachments/fosdem-2024-3683-the-regulators-are-coming-one-year-on/slides/22201/Slides_CRA_FOSDEM_v3_ukPnQUG.pdf

Regulation (EU) 2024/2847 -- CRA, Article 3(48)

(48) ‘free and open-source software’ means software the source code of which is openly shared and which is made available under a free and open-source licence which provides for all rights to make it freely accessible, usable, modifiable and redistributable; → 四大自由

https://eur-lex.europa.eu/eli/reg/2024/2847/oj/eng#art_3

Understanding US

https://www.linuxfoundation.org/resources/publications/understanding-us-export

PUBLICATION

Understanding US export controls with open source projects

DOWNLOAD REPORT

One of the greatest strengths of open source development is how it enables collaboration across the entire world. However, because open source development is a global activity, it necessarily involves making available software across national boundaries. Some countries' export control regulations, such as the United States, may require taking additional steps to ensure that an open source project is satisfying obligations under local regulations.

In July of 2020, The Linux Foundation published a whitepaper on how to address these issues in detail. In 2021, the primary update in the paper is to reflect a change in the US Export Administration Regulations.



DOWNLOAD REPORT

https://www.linuxfoundation.org/resources/publications/understanding-us-export-controls-with-open-source-projects

美國出口管制規則 (EAR):

1. 雖然主體管的是專利 (技術)
2. 但軟體出口不是不管
3. 然軟體已先行公開 (publicly available) 者、低度管制，
4. 僅其中涉及加密 (encryption) 技術者、要管
5. 然若此加密技術若亦公開可及、電郵備查

《加州 AI 透明法》

SB 942 《 California AI Transparency Act 》

2026 SB 1000 修正

GenAI hosting platform

所提供的 AI 模組若不予標示則撤回授權 →

當得知所提供的 AI 模組若不予標示則告知其違反法規

《加州年齡驗證法案》

AB-1856 《 California's Age Verification Bill 》

Operating System Provider

資訊系統平台未來可能被要求負責取得、判定並提供使用者年齡區間訊號 →

純粹提供自行安裝的開源軟體作業系統 (Open Source Operating System) 除外



https://faircode.io/

Fair-code licenses

Business Source License

https://mariadb.com/bsl11

Commons Clause with any OSI approved open-source license

https://commonsclause.com

Confluent Community License

https://www.confluent.io/confluent-community-license

Elastic License 2.0 (ELv2)

https://www.elastic.co/licensing/elastic-license

Server Side Public License

https://www.mongodb.com/licensing/server-side-public-license

Sustainable Use License

https://github.com/n8n-io/n8n/blob/master/LICENSE.md

https://faircode.io/

Source Available ≠ Open Source

源碼可及、僅是可及

並不擔保穩定的開放式利用狀態

Source Available ≠ Open Source

見源軟體、看得到不一定摸得著

意思就是能不能用還要再考究

Meta 喬不定只能回歸開源的共識規則……

Llama 1: GPL-3.0 Code + Non-commercial Weights

Llama 2–4: Respective Llama Community Licenses

Muse Glimmer 30B: Apache-2.0 + Usage Policy

Muse Spark 1.3: Proprietary / API Only

Meta AI 模型在開源、開放權重與專有模式之間的歷史游移

NVIDIA Open Model License 並非傳統開源

- revocable (as stated in Section 2.1)
- U.S. Export Administration Regulations and Office of Foreign Assets Control regulations

OpenMDW License Agreement 卻連

trade secret 都要禁反言

- OpenMDW-1.1 (Linux Foundation)
- 很全面擴及著作權、軟體專利權的自我抑制條款

Moonshot AI Kimi models

Kimi 1: MIT License

Kimi 2: Modified MIT License : display "Kimi K2" when 100 million monthly active users or 20 million US dollars in monthly revenue

Kimi 3: Kimi K3 License : "Kimi K3" + "Model as a Service" 20 million US dollars over 12 months → Source Available License

真開源、準開源、假開源

Open Source as the Business Intelligence

Thanks! 謝謝！